

**RESTRICTIONS ON CROSS-BORDER
MARKETING AND SELLING OF
FUNDS AND INVESTMENT MANAGEMENT & ADVISORY SERVICES
INTO
MAURITIUS
PART B
9 July, 2026**

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1. BACKGROUND

1.1 Introduction

Please refer to the *Instructions to Counsel* that you have been sent in conjunction with this Part B of the Memorandum.

1.2 Structure of Part B

The questions in Part B of the Memorandum are set out in sections 3 to 11. These sections comprise the **Part B Memorandum Subject Matter**.

1.3 Definitions

Active Marketing	Marketing activities which extend beyond Passive Marketing.
Arranging	Making arrangements for another person to buy, sell or subscribe for a Fund or Investment Management & Advisory Services or passing execution instructions to a third party.
Closed-Ended Fund	A Fund with a fixed number of units or shares which does not offer an investor the opportunity to regularly purchase or sell its units or shares.
cross-border	Where: (a) clients, or prospective clients, are located in your jurisdiction; (b) the OFI is headquartered in a jurisdiction different to your own and either has no licensed office in your jurisdiction or is not carrying out the marketing or selling through any licensed office in your jurisdiction; and (c) employees of the OFI are based in a different jurisdiction to your own and are employed by an entity within the OFI group which is headquartered in a different jurisdiction to your own.
Execution of Orders on Behalf of Clients	Agreeing to conclude agreements to buy or sell one or more financial instruments on behalf of clients.
Fly-In Meeting	Employees of the OFI flying into your jurisdiction to carry out marketing activities.
Fly-Out Meeting	Marketing activities which take place offshore and which are directed at a person who is normally resident in your jurisdiction.
Fund	A collective investment undertaking, with or without legal personality, which raises capital from a number of investors with a view to investing it in accordance with a defined investment policy for the benefit of those investors. For the purposes of this Memorandum, local counsel have been instructed to assume that all Funds are offshore.
Investment Advice	The provision of personal recommendations to a client, either upon its request or at the initiative of the OFI, in respect of one or more transactions relating to financial instruments.

Investment Management & Advisory Services	Investment Advice, Arranging, Portfolio Management and Execution of Orders on Behalf of Clients.
OFI	A bank, asset manager or other offshore financial institution e.g. distributor, which is marketing or providing financial products or services and is headquartered in a different jurisdiction to your jurisdiction.
Open-Ended Fund	A Fund with or without legal personality which offers an investor the opportunity to regularly purchase or sell its units or shares.
Part B Memorandum Subject Matter	The contents of sections 3 to 11 of Part B of this Memorandum.
Passive Marketing	Marketing or selling following an unsolicited approach by an investor. May also be known as “reverse-enquiry” or “reverse-solicitation”.
Portfolio Management	Managing portfolios in accordance with mandates given by clients on a discretionary client-by-client basis where such portfolios include one or more financial instruments.
Segregated Managed Account	A contractual arrangement between an investment manager and investor where the investment manager makes discretionary investments into financial instruments or assets through an account owned by the investor.
Single Investor Vehicle	A vehicle, which makes investments into financial instruments or assets and which is prevented by national law, the rules or instruments of incorporation, or any other provision or arrangement of binding legal effect, from raising capital from more than one investor.
UCITS Fund	A Fund which qualifies as an undertaking for collective investment in transferable securities under the UCITS IV Directive (2009/65/EC) and which has been authorised as such in an EEA Member State.

1.4 Executive Summary

Marketing Funds

Active marketing/selling

An OFI actively marketing/selling interests in a Fund cross-border to investors in Mauritius will need to consider: (i) the Investment Dealer/Adviser Licensing Requirement; (ii) the Advertisement Restriction; and (iii) the Public Offering of Securities Requirement.

Whilst Soliciting Sophisticated Investors will not trigger the Investment Dealer/Adviser Licensing Requirement or the Advertising Restriction, related active marketing/selling activities may trigger these restrictions.

The Investment Dealer/Adviser Licensing Requirement is triggered where the OFI "holds itself out" as an Investment Dealer or an Investment Adviser. Where the Investment Dealer/Adviser Licensing Requirement is triggered the OFI will then also be required to comply with the Advertising Restriction when publishing an Advertisement. There is no additional guidance on what constitutes "holding out" and the safest course of action is therefore to use a locally licensed intermediary.

Where the Fund is a Recognised Foreign CIS or a Recognised Fully Regulated Scheme then the manager of such Fund can conduct marketing/selling activities itself without using a locally licensed intermediary.

Funds publicly offering their interests in Mauritius must comply with the Public Offering of Securities Requirement. There are workable exemptions/exceptions where the investor is a Sophisticated Investor including the Sophisticated Investors Exemption. In addition the Public Offering of Securities Requirement does not apply to Recognised Foreign CIS, Recognised Fully Regulated Schemes or Permitted CIS Activities.

Passive marketing/selling

Passive Marketing of a Fund is permitted and will not trigger the above requirements/restrictions provided that the Conditions for Permitted Reverse Enquiry are complied with and the OFI conducts its activities on a cross-border basis only.

Investment Management & Advisory Services (IMAS)

Active marketing/selling

Active Marketing and provision of IMAS by an OFI in Mauritius is subject to the Investment Dealer/Adviser Licensing Requirement and the Advertising Restriction. There are no available exemptions or exclusions. However an OFI could consider using a locally licensed intermediary.

Passive marketing/selling

The position described above in relation to passive marketing/selling of Funds also applies in respect of IMAS.

Segregated managed accounts, single investor vehicles and family office undertakings

The marketing/sale of interests in these vehicles by an OFI to investors in Mauritius is subject to the same requirements as apply to the marketing/provision of IMAS as set out above unless these vehicles are deemed to be Securities (in which case the Public Offering of Securities Requirement would also apply).

For the purposes of this section 1.4, the underlined words have the following meanings:

Advertisement

The definition of advertisement is set out in the Guidelines. It includes:

- commercial and promotional materials communicated through any medium and in any form, including:
 - magazines and newspapers,
 - radio and television,
 - outdoor advertising, including billboards, window display and signs at public venues,
 - the internet, including webpages, banner advertisement and social networking (e.g. Facebook and Twitter),
 - product brochures and promotional fact sheets,
 - direct mail (e.g. by post, facsimile or email),
 - telemarketing activities, seminars and presentations to groups of people.
- commercial and promotional materials used for the marketing or promotion of **Financial Products** to consumers and potential consumers in Mauritius and which are distributed through any medium.

This definition is wide-ranging would include marketing materials that are distributed to investors through any medium.

Advertisement Restriction

No person, other than a person licensed, authorised or approved in Mauritius, shall publish or cause to be published an **Advertisement** in connection with the conduct of an activity or provision of a service which requires a licence, approval, authorisation or registration in Mauritius.

The **Guidelines** require certain specific disclosures and disclaimers on the product and the persons promoting them. Please see section 6.3(e) for more detail.

Conditions for Permitted Reverse Enquiry

- The OFI conducts its activities on a cross-border basis only (i.e. Fly-in Meetings should be avoided). To the extent that any fly-in meetings will not constitute "carrying out" or "holding itself as carrying out" financial services in Mauritius, they are permitted. There is no additional guidance on what constitutes "holding out".
- The reverse enquiry should be as specific as possible.
- Each separate transaction is preceded by a reverse enquiry.
- There is no maximum number of investors that an OFI can market/sell to in response to an unsolicited approach.

- It is possible for an OFI to receive a general confirmation from a Sophisticated Investor that it is happy to be contacted about future opportunities. This is not permitted in respect of other investors.
- There are no restrictions regarding future communications with investors known to the OFI on the basis of a reverse enquiry provided that the communication falls within and corresponds to the initial enquiry by the investor.
- Whilst responding to a reverse enquiry will not trigger the Advertising Restriction, it is advisable to consider the **Guidelines for Advertising and Marketing of Financial Products**.

Financial Product

The definition of Financial Product includes Funds.

Guidelines

The [Guidelines for Advertising and Marketing of Financial Products](#) regulating the advertising and promotion of financial instruments and Fund products.

The Guidelines require certain specific disclosures and disclaimers.

The guidelines apply to all **Promoters** who are involved in the advertising and marketing of **Financial Products** in Mauritius.

- *Principle 1:* Disclosures of fundamental benefits, risks, terms and costs of the product and the remuneration and conflicts associated with the distributor/intermediary through which the product is sold.
- *Principle 2:* Key information should be delivered, or made available, for free, to an investor before the point of sale, so that the investor has the opportunity to consider the information and make an informed decision about whether to invest.
- *Principle 3:* Key information should be delivered or made available in a manner that is appropriate for the target investor.
- *Principle 4:* Disclosure of key information should be in plain language and in a simple, accessible and comparable format to facilitate a meaningful comparison of information disclosed for competing products.
- *Principle 5:* Key information disclosures should be clear, accurate and not misleading to the target investor. Disclosures should be updated on a regular basis.
- *Principle 6:* In deciding what key information disclosure to impose on intermediaries and product producers, regulators should consider who has control over the information that is to be disclosed.

Please see section 6.3(f) for a fuller description of the Guidelines.

Investment Adviser

Any person who by way of a business:

- advises, guides or recommends other persons, or holds himself out to advise, guide or recommend other persons, whether personally or through printed materials or by other means, to enter into Securities transactions;
- manages or holds himself out to manage, under a mandate, whether discretionary or not, a portfolio of Securities; or
- gives advice on corporate finance advisory matters concerning Securities transactions.

Investment Dealer

Any person who by way of a business:

- acts or holds himself out as an intermediary in the execution of Securities transaction on behalf of another person;
- trades or holds himself out to trade in Securities as principal for his own account with the intention of selling them to the public; or
- underwrites or distributes or holds himself out to underwrite or distribute Securities on behalf of an issuer or holder of Securities.

Investment Dealer/Adviser Licensing Requirement

- No person shall, by way of business act as an **Investment Adviser** without an investment adviser licence issued by the FSC or without being licensed as a representative of an investment adviser by the FSC.
- No person shall, by way of business act as an **Investment Dealer** without an investment dealer licence issued by the FSC or without being licensed as a representative of an investment dealer by the FSC.
- No person other than the holder of an Investment Dealer/Investment Adviser licence shall **Solicit** a retail investor to enter into **Securities** transactions.

The investment bank licence is an umbrella licence for investment banking covering both the Investment Dealer and Investment Adviser.

The OFI would be required to incorporate a local entity in Mauritius to be eligible for such a licence. Please see section 10 for more information.

Permitted CIS Activities

The marketing/selling to a **Sophisticated Investor** in Mauritius of units or shares of an entity that carries out the activities of a collective scheme and that is established in a foreign country where such marketing is undertaken:

- by a CIS manager established in Mauritius;
- by a person carrying out the activities of an investment dealer outside Mauritius; or
- in accordance with such other provisions as the FSC may determine.

Professional CIS

A Professional CIS is a collective investment scheme that offers its shares to:

- **Sophisticated Investors;** or
- as a private placement pursuant to the private placement exemption as set out in section 7.1(a).

Promoter

Any person licensed, authorised or approved in Mauritius to carry out or provide any activity or financial services which require a licence, approval, authorisation or registration in Mauritius.

Public Offer of Securities Requirement

A person is prohibited to make an offer of **Securities** (which for the purposes of this Part B Memorandum includes interests in a Fund) to the public, unless-

- the entity whose Securities are being offered is in existence at the time of the offer;
- the offer is made in a prospectus that complies with this part; and
- the FSC has given a provisional registration to the prospectus.

This requirement does not apply to **Recognised Foreign CIS, Recognised Fully Regulated Schemes** and **Permitted CIS Activities**.

Recognised Foreign CIS

A collective investment scheme established in a foreign country whose securities are marketed to retail investors in or from Mauritius which has been recognised by the FSC following an application to it. The OFI will need to be authorised to act as manager of the collective investment scheme in its home jurisdiction.

This be subject to such conditions that the FSC considers necessary or desirable for the protection of participants in the scheme. Please see 6.2(d)(i) and 7.1(a) of the Memorandum for further details.

Recognised Scheme	Fully Regulated	A Fund which has been recognised by the FSC under the various categories set out in the Securities Act and the Securities (Collective Investment Schemes & Closed-end Funds) Regulations 2008. Such schemes are mainly offered to the public and generally do not hold a global business licence. The OFI will need to be authorised to act as manager of the scheme in its home jurisdiction. Please see 6.2(d)(i) and 7.1(a) of the Memorandum for further details.
Securities		The definition of Securities in Mauritius includes shares in, securities of, or rights to participate in, a collective investment scheme (which includes a Fund).
Solicitation		Where a person or his agent induces a retail investor to buy, sell or exchange Securities or to participate in a transaction involving Securities or offers a person services, recommendations or advice for those purposes by: • seeking to meet such person at his place of residence, work or public place; • contacting such person by telephone, letter, circular, the internet or other electronic means or telecommunication system; or • publishing or causing an Advertisement to be published or circulated.
Sophisticated Investors		(a) the Government of Mauritius; (b) a statutory authority or an agency established by an enactment for a public purpose; (c) a company, all the shares in which are owned by the Government of Mauritius or a body specified in paragraph (b); (d) the government of a foreign country, or an agency of such government; (e) a bank; (f) a CIS manager licensed in Mauritius; (g) an insurer; (h) an investment adviser licensed in Mauritius; (i) an investment dealer licensed in Mauritius; (j) an investor that warrants, at the time of entering into a securities transaction, that:

- its ordinary business or professional activity includes the entering into securities transactions, whether as principal or agent;
 - in case he is a natural person, his individual net worth or joint net worth with his spouse exceeds one million USD, or its equivalent in another currency; or
 - it is an institution with a minimum amount of assets under discretionary management of 5 million USD, or its equivalent in another currency; or
- (k) a person declared by the FSC to be a Sophisticated Investor.

Sophisticated Investors Exemption

An exemption to the **Public Offer of Securities Requirement** when the issue of **Securities** is made only to any number of **Sophisticated Investors**.

2. GUIDELINES FOR COMPLETING PART B OF THIS MEMORANDUM

Please check the boxes below to **confirm** you have followed each of these guidelines:

Please **do**:

- (a) let us know if there are **upcoming legislative changes** in relation to the Part B Memorandum Subject Matter **before** continuing to complete Part B. If the changes are major, we may ask you to delay work on completion of Part B until the changes are in force; ☒
- (b) **confirm** that the questions in Part B **cover** all the issues, requirements, restrictions, exemptions or workarounds that could apply to: (i) the cross-border **marketing** and **sale** of Funds or Investment Management & Advisory Services into your jurisdiction and (ii) the cross-border **provision** of Investment Advice or Arranging into your jurisdiction in connection with Funds or Investment Management & Advisory Services; ☒
- (c) provide **focused answers**, which deal only with issues/requirements/exemptions/conditions that are **relevant to a financial institution** (e.g. bank/securities firm/credit institution/hedge fund/investment fund/pension fund/insurance firm)— please do **not** provide theoretical answers that could never apply in practice to a financial institution; ☒
- (d) ensure that you **answer all of the questions** posed in Part B (please note that certain questions comprise several separate questions, all of which must be answered); ☒
- (e) use the **defined terms** in section 1.3 of this Part B; ☒
- (f) begin answers with "**Yes**" or "**No**", where possible, followed up with a **simple and concise** explanation; ☒
- (g) where publicly available free of charge, please provide (i) **a website link to any guidance** (e.g. guidance issued by the competent regulator) referred to in your responses; and (ii) an **English translation** of any such guidance; and ☒
- (h) **complete Appendix 1, 2, 3 and 4 of this Part B**, which pull together all of the required and recommended legends, disclosures, risk factors and other forms of wording to be included in the communications referred to in this Part B. ☒

Please **do not**:

- (i) leave any answer **blank** – if a question is not applicable, please indicate this by stating "N/A" (and provide a brief explanation why it is not applicable); ☒
- (j) **modify** any question or the format of this Part B; ☒
- (k) qualify your answer with **additional factual assumptions** unless agreed with aosphere Limited; or ☒
- (l) **cross-refer** to answers to Part A of this Memorandum. Part A and Part B should be treated as separate standalone documents. ☒

3. SOURCES OF LAW; GUIDANCE; COMPETENT REGULATOR

Questions	Answers
(a) Please list the principal sources of law (whether based on specific legislative statutes, common/case law or equity (where applicable) or civil laws/codes and including constitutional laws) applicable to the cross-border marketing and sale of: (i) Funds; and (ii) Investment Management & Advisory Services, to investors located in your jurisdiction. Please include the date that the relevant law(s) entered into force.	• The Financial Services Act 2007, with effect from 28 September 2007 (the “FSA”); https://www.fscmauritius.org/media/194566/the-financial-services-act-2.pdf • The Companies Act 2001, with effect from 01 December 2001; https://www.fscmauritius.org/media/0qnd4or5/companies-act-2001.pdf • The Securities Act 2005, with effect from 28 September 2007 (the “Securities Act”); https://www.fscmauritius.org/media/unplr23n/the-securities-act.pdf • <u>The Securities (Amendment) Act 2021</u>, with effect from 01 July 2021 (the “Securities (Amendment) Act 2021”); https://www.fscmauritius.org/media/zallogr4/the-securities-amendment-act-2021.pdf • The Securities (Collective Investment Schemes and Closed-end Funds) Regulations 2008, with effect from 28 September 2007 https://www.fscmauritius.org/media/4zzfkkmb/the_securities__central_deposit_ory_clearing_and_settlement__act_1996.pdf • The Securities (Licensing) Rules 2007 (came into effect 28 September 2007)

	https://www.fscmauritius.org/media/cpvmobzr/3-securities-licencing-rules-2007.pdf • The Financial Intelligence and Anti-Money Laundering Act 2002, with effect from 10 June 2002 https://www.fscmauritius.org/media/uglnz2sn/financial-intelligence-and-anti-money-laundering-act-2002-1.pdf • The Anti-money Laundering and Combating the Financing of Terrorism and Proliferation (Miscellaneous Provisions) Act 2019 (assented on 29th May 2019) https://www.fscmauritius.org/media/spvvnv1lz/the-anti-money-laundering-and-combatting-the-financing-of-terrorism-and-proliferation-miscellaneous-provisions-act-2019-1.pdf • <u>The AML/CFT (Miscellaneous Provisions) Act 2020</u> (assented on 9th July 2020) https://www.fscmauritius.org/media/xvup4e3q/the-anti-money-laundering-and-combatting-the-financing-of-terrorism-and-proliferation-miscellaneous-provisions-act-2020.pdf • The United Nations (Financial Prohibitions, Arms Embargo and Travel Ban) Sanctions Act 2019 (assented on 29th May 2019) https://www.fscmauritius.org/media/q2ed0bhr/the-anti-money-laundering-and-combatting-the-financing-of-terrorism-and-proliferation-miscellaneous-provisions-act-2019.pdf Financial Intelligence and Anti-Money Laundering Regulations 2018 (effective 1st October 2018)
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	https://www.fscmauritius.org/media/55tezjk2/financial-intelligence-and-anti-money-laundering-amendment-regulations-2018.pdf • The Financial Services (Consolidated Licensing and Fees) Rules 2008 (in relation to licence fees) (came into effect 22 March 2008) <i>https://www.fscmauritius.org/media/it1dm5yd/financial-services-consolidated-licensing-and-fees-amendment-rules-2026.pdf</i> • Financial Services (Special Purpose Fund) Rules 2021 (came into effect on 06 March 2021) https://www.fscmauritius.org/media/rtvgxmkg/consolidated-fs-spf-rules.pdf • Financial Services (Investment Banking) Rules 2016 (came into effect on 07 September 2016) https://www.fscmauritius.org/media/5lvfpzut/financial-services-investment-banking-rules-2016.pdf • <u>Financial Services (Exemption from Approval of Controllers and Beneficial Owners) (Revocation) Rules 2020</u> https://www.fscmauritius.org/media/jwnn5kdg/gn-15-fsc-rules-made-by-fsc-under-sections-23-4-and-93-of-the-fsa.pdf • Financial Services (Custodian services (digital asset)) Rules 2019 (effective 1st March 2019) https://www.fscmauritius.org/media/70809/44_fs-_custodian-service.pdf • Financial Services (Spot Commodity Market and Intermediaries) Rules 2024
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	https://www.fscmauritius.org/media/u4fb0q0a/financial-services-spot-commodity-market-and-intermediaries-rules-2024.pdf • Securities (Preferential Offer) Rules 2017 (came into effect on 01 July 2017) https://www.fscmauritius.org/media/hhukea5n/a10_securities-preferential-offer-rules.pdf • Securities (Real Estate Investment Trusts) Rules 2021 https://www.fscmauritius.org/media/pxrjhmj2/a5_the-securities_real-estate-investment-trusts_rules-2021.pdf • Trust Act 2001(for funds structured as trusts), with effect from 01 December 2001 https://www.fscmauritius.org/media/uouhyxma/fsc-trusts-act-2001.pdf • The Protected Cell Companies Act 1999, with effect from 01 January 2000 https://www.fscmauritius.org/media/q1tktl4n/protected-cell-companies-actpdf.pdf • The Protected Cell Companies (Amendment of Schedule) Regulations 2005 (came into effect 30 June 2005) https://www.fscmauritius.org/media/tlvbp34y/protected_cell_companies_-_amendment_of_schedule-_regulations_2005.pdf • The Protected Cell Companies (Amendment of Schedule) Regulations 2013 https://www.fscmauritius.org/media/whbjpexf/protected-cell-companies-amendment-of-schedule-regulations-2013.pdf • The Limited Partnerships Act 2011 (came into effect on 11 November 2011)
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	https://www.fscmauritius.org/media/d3rhys3l/limited-partnerships-act-2011.pdf • The Virtual Asset and Initial Token Offering Services Act 2021 https://www.fscmauritius.org/media/feonehxt/the-virtual-asset-and-initial-token-offering-services-act.pdf
(b) Please list any guidance (e.g. bulletins, codes of practice, guidelines, etc.) issued by the competent regulator(s), which is relevant to the subject matter referred to in section (a) above. Please indicate whether guidance has binding (i.e. legally enforceable) or other status.	• Guidelines for Advertising and Marketing of Financial Products (issued under section 7(1)(a) of the Financial Services Act 2007 (as amended 01 April 2016) (came into effect 01 January 2015) (the “Guidelines”) https://www.fscmauritius.org/media/rnvj32vl/guidelines-for-advertising-and-marketing-of-financial-products-as-amended-01-april-2016.pdf • Explanatory notes to the Guidelines for Advertising and Marketing of Financial Products (01 April 2016) (came into effect 01 April 2016) https://www.fscmauritius.org/media/rnvj32vl/guidelines-for-advertising-and-marketing-of-financial-products-as-amended-01-april-2016.pdf • Code of Prevention of Money Laundering and Terrorist Financing (issued under section 7(1)(a) of the Financial Intelligence and Anti-Money Laundering Act 2002) (published March 2012) (came into effect 01 April 2012) https://www.fscmauritius.org/media/1157/fsc-aml-cft-code-31-may-17.pdf • Anti-Money Laundering And Countering The Financing Of Terrorism Handbook 2020 • https://www.fscmauritius.org/media/131386/updated-aml-cft-handbook.pdf Code of Business Conduct (issued under section 7(1)(a) FSA 2007) (published October 2015) (effective date 01 January 2016) https://www.fscmauritius.org/media/1156/code-of-business-conduct_final.pdf • Guide to Global Business (effective 25 January 2012) https://www.fscmauritius.org/media/1167/gb_guide_25_01_12_vf.pdf • Communiqué- Amendments to the Guide to Global Business (04 September 2013) https://www.fscmauritius.org/media/1166/communique-amendments_to_gb_guide.pdf • Communiqué- Amendments to the Guide to Global Business (February 2014)

	https://www.fscmauritius.org/media/1165/communiqu%C3%A9-amendments-to-the-guide-to-global-business-28-feb-2014.pdf • Competency Standards (October 2014) https://www.fscmauritius.org/media/1164/competency-standards_27oct14-final-final.pdf • Amendments to the Competency Standards with respect to Designated Officer for CIS Managers (02 February 2016) https://www.fscmauritius.org/media/1163/amendments-to-the-competency-standards-with-respect-to-designated-officer-for-cis-managers.pdf • Guidance Notes on Recognition of Digital Assets as an asset-class for investment by Sophisticated and Expert Investors (made on 17th September 2018) https://www.fscmauritius.org/media/55002/updated-guidance-notes-on-the-recognition-of-virtual-asset-as-an-asset-class.pdf • Guidance Notes on Securities Tokens Offerings (made on 8th April 2019) https://www.fscmauritius.org/media/70865/updated-guidance-notes-on-security-token-offerings.pdf • Circular Letter dated 27 June 2017 with respect to Professional Collective Investment Schemes offering its shares by way of private placement https://www.fscmauritius.org/media/3988/circular-cis-peis-27-jun-17-231835.pdf • Circular Letter dated 12 July 2017 with respect to Asset Manager Certificate, Fund Manager Certificate, and Asset and Fund Manager Certificate https://www.fscmauritius.org/media/4035/asset-and-fund-manager-certificates.pdf • Circular Letter dated 15 August 2017 in relation to Derogation for the applicability of the Securities (Preferential Offer) Rules 2017 https://www.fscmauritius.org/media/4067/circular-letter-cl150817.pdf • Rules to the Financial Services (Framework for the Imposition of Administrative Penalties) Rules 2022 https://www.fscmauritius.org/media/168536/updated-financial-services-framework-for-the-imposition-of-aps-rules-2022.pdf They have legally binding effect.
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(c) Please provide a website link to the English language version of any such sources of law or guidance referred to in section (a) or section (b) above, if publicly available free of charge.	Please see 3(a) and 3(b) above.
(d) Are there any announced future changes to the laws listed in section (a) above? If so, please: (i) contact us before continuing if the changes are significant; and (ii) provide brief details (including expected date of entry into force and what the anticipated scope of the changes is to the extent relevant).	Yes. The FSC announced that it intends to amend certain rules and regulations made under the Securities Act including those to public offers. This does not impact our answers to this Memorandum. There is no update on the timing of this.
(e) Please provide the name of the competent regulator(s) .	Financial Services Commission (“FSC”).
(f) Please provide a link to the competent regulator's website (if any) – the English language version if available.	https://www.fscmauritius.org/

4. [SECTION INTENTIONALLY LEFT BLANK]

5. PASSIVE MARKETING (REVERSE-ENQUIRY)

Questions	Answers
(a) Is marketing/selling of a Fund (whether Open-Ended or Closed-Ended) permitted following an unsolicited approach by an investor to an OFI?	Public Offer of Securities Under section 68 (1) of the Securities Act, a person is prohibited from making an offer of securities (defined below and for the purposes of this Memorandum includes a Fund to the public, unless- (a) the entity whose securities are being offered is in existence at the time of the offer; (b) the offer is made in a prospectus that complies with the Securities Act; and (c) the FSC has given a provisional registration to the prospectus, (the “Public Offer of Securities Requirement”). Section 69 of the Securities Act sets out that this requirement does not apply to: Recognised Foreign CIS, Recognised Fully Regulated Schemes and "Permitted CIS Activities". Please see section 7.1(a) for details of exemptions to this requirement. Permitted CIS Activities mean the marketing to a Sophisticated Investor (as defined in section 7.1(a)) in Mauritius of units or shares of an entity that carries out the activities of a collective scheme and that is established in a foreign country where such marketing is undertaken: (a) by a CIS manager established in Mauritius; (b) by a person carrying out the activities of an investment dealer outside Mauritius; or (c) in accordance with such other provisions as the Commission may determine. Securities are defined in the Securities Act as: (a) shares or stocks in the share capital of a company, whether incorporated in Mauritius or elsewhere, other than a collective investment scheme; (b) debentures, debenture stock, loan stock, bonds, convertible bonds, green bonds or other similar instruments; (c) rights warrants, options or interests in respect of securities mentioned in paragraphs (a) and (b); (d) treasury bills, loan stock, bonds and other instruments creating or acknowledging indebtedness and issued by or on behalf of or guaranteed by the Government of the Republic of Mauritius or the government of another country, a local authority or public authority, as may be prescribed;

- (e) shares in, securities of, or rights to participate in, a collective investment scheme (includes a Fund for the purposes of this Memorandum);
- (f) depository receipts or similar instruments;
- (g) options, futures, forwards and other derivatives whether on securities or commodities;
- (h) any other transferable securities, interests or assets as may be approved by the Commission; or
- (i) any such other instruments as may be prescribed,

The definition of Security does not include a virtual token under the Virtual Asset and Initial Token Offering Services Act 2021.

Pursuant to section 67 of the Securities Act, a person shall be deemed to make an offer or distribution of Securities where that person invites or solicits another person to:

- (a) purchase or substitute to Securities that have never been issued;
- (b) enter into an agreement for the underwriting of Securities;
- (c) purchase Securities underwritten;
- (d) distribute Securities previously offered without a prospectus; or
- (e) purchase Securities, other than Securities acquired on a securities exchange in normal market operations, previously issued and held by a person, including an issuer,

and where, in each case, the offer or distribution is made from Mauritius, or received in Mauritius.

As such, where the OFI is responding to a reverse enquiry and has not in any way invited/solicited another person, it will not be deemed to have made an offer or distribution of Securities and as such the Public Offer of Securities Requirements will not apply when an OFI is marketing/selling a Fund following an unsolicited approach.

Investment Dealer/Adviser Licensing Requirement

A person is also prohibited from soliciting a retail investor (as defined below) to enter into securities transactions (which for the purposes of this Part B Memorandum includes the purchase of interests in a Fund) unless they are the holder of an investment dealer or investment adviser licence. Section 31 (1) of the Securities Act provides that, “*no person other than the holder of a licence referred to under section 29 or 30 of the Securities Act, shall solicit a retail investor to enter into securities transactions*”.

Furthermore, section 30 of the Securities Act states that, “*subject to section 79A of the FSA, no person shall, by way of business:*

	(a) <i>advise, guide or recommend other persons, or hold himself out to advise, guide or recommend other persons, whether personally or through printed materials or by other means, to enter into securities transactions;</i> (b) <i>manage or hold himself out to manage, under a mandate, whether discretionary or not, a portfolio of securities; or</i> (c) <i>give advice on corporate finance advisory matters concerning securities transactions, without an investment adviser licence issued by the FSC or without being licensed as a representative of an investment adviser by the FSC”.</i> Section 29 of the Securities Act provides that, “Subject to section 79A of the FSA, no person shall, by way of business: (a) <i>act or hold himself out as an intermediary in the execution of securities transaction on behalf of other person;</i> (b) <i>trade or hold himself out to trade in securities as principal for his own account with the intention of selling them to the public; or</i> (c) <i>underwrite or distribute or hold himself out to underwrite or distribute securities on behalf of an issuer or holder of securities,</i> <i>without an investment dealer licence issued by the FSC or without being licensed as a representative of an investment dealer by the FSC.”</i> Investment Banking Licence An Investment Banking Licence enables a person to conduct the activities of an investment dealer (full service dealer including underwriting), investment adviser (unrestricted), investment adviser (corporate finance advisory), asset management, distribution of financial services and such other services as may be specified in the FSC Rules. The Investment Banking Licence is in fact an umbrella licence for investment banking. It is a separate category of licence but encompasses the Investment Dealer/Investment Adviser licences. These provisions are collectively referred to herein as the “Investment Dealer/Adviser Licensing Requirement” and an OFI marketing/selling interests in a Fund cross-border to investors in Mauritius will be caught by this requirement unless the Fund is recognised and it is the manager of the Fund. See section 6.2(d)(i) below. Definition of “soliciting” / “solicitation”
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	“Soliciting” is defined under the Securities Act as where a person or his agent induces a retail investor (as defined below) to buy, sell or exchange Securities or to participate in transactions involving Securities or offers a person services, recommendations or advice for those purposes by: (a) seeking to meet such person at his place of residence, work or public place; (b) contacting such person by telephone, letter, circular, the internet or other electronic means or telecommunication system; or (c) publishing or causing an advertisement to be published or circulated. “Retail Investor” is defined as means such category of investors, other than Sophisticated Investors, as specified in FSC Rules. Please see section 7.1(a) for a definition of Sophisticated Investor. An OFI’s active marketing /selling activities may therefore be caught by the Investment Dealer/Adviser Licensing Requirement. However, where an OFI is responding to a reverse enquiry from any investor, the Investment Dealer/Adviser Licensing Requirement should not be triggered. FSA Advertisements Section 31(1) of the FSA provides that no person, other than a person licensed, authorised or approved under a relevant Act in Mauritius (as defined therein), shall publish or cause to be published an Advertisement (defined below) in connection with the conduct of an activity or provision of a service which requires a licence, approval, authorisation or registration under a relevant Act in Mauritius. See also the Guidelines for Advertising and Marketing of Financial Products issued by the FSC on 1 January 2015 which set out required disclosures and disclaimers on the product and the persons promoting them (more detail on the key principles is set out at section 6.3(f)) (the “Advertisement Restriction”). The definition of "Advertisement" is set out in the Guidelines for Advertising and Marketing of Financial Products and it includes commercial and promotional materials communicated through any medium and in any form, including magazines and newspapers, radio and television, outdoor advertising, including billboards, window display and signs at public venues, the internet, including webpages, banner advertisement and social networking (e.g. Facebook and Twitter), product brochures and promotional fact sheets, direct mail (e.g. by post, facsimile or email), telemarketing activities, seminars and presentations to groups of people. Advertisement also covers commercial and promotional materials used for the marketing or promotion of Financial
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	Products to consumers and potential consumers in Mauritius and which are distributed through any medium currently known or hereafter developed. The definition of Advertisement is therefore very wide and includes marketing materials that are sent to potential investors. The guidelines apply to all promoters who are involved in the advertising and marketing of Financial Products in Mauritius. For the purposes of this section: • promoter means any person licensed, authorised or approved under the relevant Acts in Mauritius to carry out or provide any activity or financial services which require a licence, approval, authorisation or registration under the relevant Acts in Mauritius. The guidelines do not refer to the appointment of an intermediary. • Financial Product means facilities through which, or through the acquisition of which, a person does one or more of the following: • makes a financial investment; • manages financial risk; • makes non cash payments; and it includes financial services. The definition of Financial Product includes Funds. • Financial Services has the same meaning as in the Financial Services Act. This is defined as: • means any financial services or financial business activities governed by the relevant Acts; and • includes the financial business activities specified in Part I of the Second Schedule. The definition of Financial Services includes IMAS. As set out above, the Advertising Restriction applies when an OFI publishes or causes to be published an advertisement in connection with the conduct of an activity or provision of a service which requires a licence, approval, authorisation or registration under a relevant Act in Mauritius. As discussed above, the Investment Dealer/Adviser Licensing Requirement is not triggered when responding to a reverse enquiry and therefore it is also not necessary to consider the regime applicable to Advertisements.
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	Additionally, please note that the Advertisement Restriction does not apply in relation to Recognised Foreign CIS/ Recognised Fully Regulated Schemes in Mauritius. In summary, an OFI marketing/selling a Fund following an unsolicited approach is permitted provided the OFI conducts its activities on a cross-border basis only (i.e. Fly-in Meetings should be avoided). Please note that to the extent that any fly-in meetings will not constitute "carrying out" or "holding itself as carrying out" financial services in Mauritius, they are permitted. Please see section 8.6 for more information. 'Doing business in Mauritius' is not defined further.
Please outline the legal basis of permitted reverse-enquiries considering the following (if relevant):	
(i) What constitutes a "reverse-enquiry"/"reverse-solicitation" within your jurisdiction?	There is no legal framework relating to reverse enquiry under our laws. In practice, a reverse-enquiry/reverse solicitation is understood to mean where an investor contacts an offshore financial institution on his own volition for any information relating to an investment service or securities transaction. An unsolicited approach should be one that does not fall within the definition of "Solicitation" as referred to at 5(a) above. The conditions are more restrictive for retail than for Sophisticated Investors.
(ii) Must a "reverse-enquiry"/"reverse-solicitation" relate to a <u>specific</u> Fund or can it be more general?	The enquiry can be both specific and more general however, please note our response to 5(b) below.
(iii) Does it make a difference if there is a pre-existing relationship with the investor?	No in relation to Sophisticated Investors, in respect of other investors, a pre-existing relationship may be evidence that the approach of the investor has not been solicited.
(iv) Must each separate transaction with a particular investor be preceded by a "reverse-enquiry"/"reverse-solicitation"?	No in relation to Sophisticated Investors, in respect of other investors, it is preferable that each separate transaction is preceded by a 'reverse enquiry', so as to avoid being caught under the definition of "Solicitation", as referred at 5(a) above.
(v) Is there a maximum number of potential investors an OFI may market/sell to in response to unsolicited approaches?	No.
(vi) Does it matter if a third party intermediary made the approach on behalf of the investor?	Assuming that the intermediary is licensed in Mauritius, no.
(vii) Does the investor need to be a particular type of investor eg a professional investor?	Marketing/selling a Fund following an unsolicited approach from an investor in Mauritius should be permitted provided that the investor is a Sophisticated Investor. In respect of other investors no, as long as the approach does not fall within the definition of "Solicitation" as referred to at 5(a) above.

(viii) Are there restrictions regarding future communications with investors known to the OFI on the basis of a “reverse-enquiry”/“reverse-solicitation”?	There are no restrictions regarding future communications provided that the nature of the communication falls within and corresponds to the initial enquiry by the investor.
(b) Please provide any applicable practical advice in respect of the “reverse-enquiry” regime in respect of Funds that you think is relevant. For example,	
(i) are there particular compliance procedures which are advised?	The practice has been for the reverse enquiry to be as specific as possible.
(ii) are there any specific requirements regarding how investor documentation or application forms are provided to an investor known to the OFI on the basis of a “reverse-enquiry”?	No, given there is no legal framework relating to reverse enquiry under our laws there are no specific requirements applicable in relation to reverse-enquiry.
(iii) is it possible for an OFI to receive a general confirmation from a potential investor that it is happy to be contacted about future opportunities?	Permitted in respect of Sophisticated Investors. In relation to other investors, broad enquiries such as future opportunities may be too vague and responses to such broad enquiries may fall within the definition of “Solicitation” as mentioned at 5(a) above thereby triggering the various requirements.
(iv) are there any registration/notification/approval/ licensing requirements which apply in respect of the OFI following an unsolicited approach regarding a Fund by an investor to an OFI?	No specific registration or approval.
(c) Is marketing/selling of Investment Management & Advisory Services permitted following an unsolicited approach by an investor to an OFI?	Permitted in respect of Sophisticated Investors.
Please outline the legal basis of permitted reverse-enquiries considering the following (if relevant):	
(i) What constitutes a “reverse-enquiry”/“reverse-solicitation” within your jurisdiction?	Please see 5(a)(i) above.

(ii) Must a “reverse-enquiry”/”reverse-solicitation” relate to a <u>specific</u> Investment Management & Advisory Service or can it be more general?	Please see 5(a)(ii) above.
(iii) Does it make a difference if there is a pre-existing relationship with the investor?	Please see 5(a)(iii) above.
(iv) Must each separate transaction with a particular investor be preceded by a “reverse-enquiry”/”reverse-solicitation”?	Please see 5(a)(iv) above.
(v) Is there a maximum number of potential investors an OFI may market/sell to in response to unsolicited approaches?	Please see 5(a)(v) above.
(vi) Does it matter if a third party intermediary made the approach on behalf of the investor?	Please see 5(a)(vi) above.
(vii) Does the investor need to be a particular type of investor e.g. a professional investor?	Please see 5(a)(vii) above.
(viii) Are there restrictions regarding future communications with investors known to the OFI on the basis of a “reverse-enquiry”/”reverse-solicitation”?	Please see 5(a)(viii) above.
(d) Please provide any applicable practical advice in respect of the “reverse-enquiry” regime in respect of Investment Management & Advisory Services that you think is relevant. For example,	Please see 5(b) above.
(i) are there particular compliance procedures which are advised?	Please see 5(b) above.
(ii) are there any specific requirements regarding how investor documentation or application forms are provided to an investor known to the OFI on the basis of a "reverse-enquiry"?	Please see 5(b) above.
(iii) is it possible for an OFI to receive a general confirmation from a potential investor that it is happy to be contacted about future opportunities?	Please see 5(b) above.

6. MARKETING/SELLING TO THE PUBLIC

Questions	Answers
6.1 Mutual Recognition of Funds/Passporting Schemes	
(a) Are there any existing or proposed regional arrangements for passporting or mutual recognition of Funds which facilitate the cross-border marketing/selling of Funds into your jurisdiction (" Arrangements ")?	No, there are no such regional arrangements for passporting or mutual recognition of Funds in Mauritius. AIFMD Third Country Regime: Non-EU Funds including Fund managers established outside of the EU managing or marketing EU Funds are subject to the AIFMD. With the approval of the ESMA MoU by EU Regulators on 22 May 2013, Mauritius satisfied all the conditions under the AIFMD for Mauritius-regulated funds to continue to market in Europe under private placement subject to certain conditions. See the FSC FAQs on AIFMD Third Country Regime below. https://www.fscmauritius.org/media/1262/faq-fsc-aifmd-03-june-2013.pdf
Examples of such Arrangements would be the Association of Southeast Asian Nations (ASEAN) CIS Framework, the Asia-Pacific Economic Co-operation (APEC) Asia Region Funds Passport, the Hong Kong-China mutual recognition platform for Funds or the Switzerland-Hong Kong mutual recognition scheme.	
(b) Please briefly describe any such Arrangements and the relevant rules, guidance or legislation. Please ensure that these sources are included in your responses to section 3 above.	N/A
(c) If the Arrangements are already in force, if possible, please comment on how widely they have been used and whether any Funds have been marketed or sold in your jurisdiction on the basis of the Arrangements. Please give an indication of costs and timescales of using such Arrangements.	N/A
(d) If the Arrangements are not yet in force, if possible, please comment on their current status and expected timeline for implementation.	N/A

(e)	Does a Fund have to be both domiciled and managed in one of the participating jurisdictions in order to benefit from the Arrangements, as implemented in your jurisdiction?	N/A
(f)	Is any local presence required in your jurisdiction or would the regulator in your jurisdiction need to approve a Fund in any way before marketing / selling can take place there on the basis of the Arrangements?	N/A
(g)	Do the Arrangements apply to both Open-Ended and Closed-Ended Funds ?	N/A
(h)	Are there any registration/notification/approval/licensing requirements which apply in respect of the OFI marketing/selling such Funds in accordance with the Arrangements in your jurisdiction?	N/A
(i)	Where pursuant to this section 6.1 it is possible to market a Fund pursuant to the Arrangements in your jurisdiction, is it recommended or mandatory to include certain disclaimers/wording in the written marketing materials for such Fund marketed to the public? If so, please provide recommended wording in Section D of each of Appendix 1 and Appendix 2 (as applicable) of this Memorandum.	N/A
6.2 Funds		
(a)	Please confirm whether your response to section 5(a) would apply where the unsolicited approach is made in respect of a Fund by an investor which is a member of the public. If applicable, please cross-refer to your answer to section (d) below.	Yes.
(b)	Is active marketing/selling of a Fund (domiciled outside your jurisdiction) to the public in your jurisdiction permitted without restriction ?	No. The following restrictions will apply unless there is an exemption/exception: - the Public Offering of Securities Requirement; - the Investment Dealer/Adviser Requirement; and - the Advertising Restriction. Please see section 5(a) for more information on these requirements.

(c) With reference to sections (a) and (b) above, if possible, please provide a definition of “the public” as such term is interpreted in your jurisdiction. For example, “the public” are those investors that are not “professional investors”.	The term “the public” is not defined further under the Securities Act or the FSA. In practice, those persons who fall into the exceptions to the Public Offer of Securities Requirements set out under section 70 of the Securities Act (and further described at 7.1(a) below) have been considered as not falling within the definition of “the public” i.e. where an offer or issue of Securities is conducted as a private placement, an offer or issue of Securities is made to Sophisticated Investors or the transmission of Securities by succession. As such, “the public” can be interpreted as those persons other than Sophisticated Investors.
(d) If the answer to section (b) above is “No”, are there certain requirements that either the OFI or the Fund (domiciled outside your jurisdiction) can fulfil so that active marketing/selling by the OFI of a Fund to the public in your jurisdiction is permitted? In preparing your answer, please ensure that your analysis covers the following (or if these matters are not relevant to your jurisdiction, please explicitly state that in your response):	An OFI actively marketing/selling interests in a Fund cross-border to the public in Mauritius will be caught by the Investment Dealer/Adviser Licensing Requirement and the Advertisement Restriction (both as further described in 5(a) above). When marketing/selling to the public, there are no exemptions to these requirements which an OFI can avail of although they can be avoided through use of a locally licensed intermediary. Alternatively where the Fund has been recognised in Mauritius then its manager will not be caught by the Investment Dealer/Adviser Licensing Requirement and the Advertisement Restriction. Please see section 6.2(d)(i) below for further detail. Please note that where an OFI is using a locally licensed intermediary, any such intermediary will, by the nature of its licence already be in compliance with the Advertisement Restriction. In addition, when marketing/selling interests in a Fund to investors in Mauritius, the Public Offer of Securities Requirements will apply unless an exception applies. Please see sections 5(a) and 7.1(a) for relevant exemptions.
(i) the impact (if any) of the marketing/sale being undertaken in respect of a Fund regulated in a country other than your jurisdiction e.g. 1940 Act Fund, UCITS Fund.	Recognition of Foreign CIS Pursuant to section 101 of the Securities Act (as amended), the FSC may, on application, recognise a collective investment scheme (CIS) established in a foreign country whose securities are marketed to retail investors in or from Mauritius (“Recognised Foreign CIS”). Recognition may be subject to such conditions that the FSC considers necessary or desirable for the protection of participants in the scheme. The application is made by way of letter to the FSC and should be accompanied by, amongst other things, the following documents: (a) Regulated prospectus which must be approved by the FSC; (b) Latest financial statements; (c) Rationale for marketing the foreign scheme to residents of Mauritius;

	(d) Any licences and regulatory approvals received. The FSC may decide that the prospectus needs to be modified to include any further disclosures. The regulator may require as part of the recognition process that Recognised Foreign CIS may not be marketed to the public in general but only to specific categories of investors. Recognition of Fully Regulated Schemes The FSC may also recognise a Fund constituted outside of Mauritius under the various categories provided under the Securities Act and the Securities (Collective Investment Schemes & Closed-end Funds) Regulations 2008 (the “Regulations”). Such schemes are mainly offered to the public and do not fall within any of the exemptions applicable to Professional, Specialised and Expert CIS (as further defined in section 7.1(a) below) and generally do not hold a global business licence (“Recognised Fully Regulated Schemes”). Application of Investment Dealer/Adviser Licensing Requirement where there is a Recognised Foreign CIS or a Recognised Fully Regulated Scheme If the Fund has been recognised by the FSC under either of the regimes above, i.e. as either a Recognised Foreign CIS or a Recognised Fully Regulated Scheme (and has not had any restrictions placed on it regarding being marketed to the public) AND the OFI has been authorised to act as the Fund manager of the scheme in its home jurisdiction, active marketing to the public by the OFI in respect of the relevant recognised fund will be permitted without further restriction. However, in other cases (where the Fund has not been recognised by the FSC under one of these regimes OR the OFI is not authorised to act as the Fund manager of the particular fund in its home jurisdiction), the OFI will be caught by the Investment Dealer/Adviser Licensing Requirement.
(ii) the impact (if any) of the marketing/sale being undertaken in respect of an Open-Ended or a Closed-Ended Fund.	As far as a foreign scheme is concerned, there is no specific guideline from the FSC but there are relevant factors to be considered when applying for recognition.
(iii) the relevant criteria for determining whether investors are in your jurisdiction for the purposes of determining whether the Fund may be offered to the public.	There are no set criteria.
(iv) whether it is (A) necessary or (B) permitted to use a local intermediary in order to market/sell interests in a Fund to the public in your jurisdiction.	Generally, yes. Unless the Fund is recognised by the FSC and the OFI is authorised to act as the manager of the Fund it will be necessary to use a local third party licensed investment dealer/adviser in order to market/sell interests in a Fund to the public in Mauritius. The use of a local intermediary is permitted and may be necessary where the Fund has not been recognised by the FSC and/or the OFI is not authorised to act as the manager of the Fund. In particular, the intermediary would generally need to be appropriately licensed as an investment

	dealer and/or investment adviser (as applicable) in order to lawfully conduct the marketing or sale of interests in the Fund to the public in Mauritius.
(v) whether there is any requirement as to the language the Fund documentation needs to be in and are there any particular requirements that apply in connection to such documents?	The Financial Services Commission (FSC) accepts documents submitted in either English or French only. If any document is in a language other than English or French, it must be translated into one of these official languages and the translation must be certified prior to submission. Additionally, prospectus must be prepared strictly in English or French. Documents must be clear, accurate, and not misleading, disclosing all material information, including risks and fees. Depending on the fund structure and target investors, prior approval from the Financial Services Commission may be required.
(e) Where it is possible to market/sell a Fund pursuant to a regime outlined in 6.2(d), please briefly outline any applicable timescales, costs, initial and ongoing filing or other requirements.	<u>Recognised Foreign CIS:</u> Cost- Registration fees-USD1,200 <u>Recognised Fully Regulated Scheme:</u> Cost- Registration fee-USD 1,200 Fixed Annual fees- USD 3,700 <u>Requirements applicable to both regimes:</u> • Formal application form; • Fees; • Duly filled in authority form and written and signed consent of each promoter, officer or controller; • Form B duly completed together with submission of relevant documents; • Copy of the constitution accompanied by legal certificate; • Certified copies of statutory documents lodged with the Registrar of Companies; • Details of promoter/shareholder, for example, CV details, PQ Form, valid passport copy, recent proof of address. https://www.fscmauritius.org/en/being-licensed/applying-for-a-licence In the case of a public offering, the Fund is subject to an additional disclosure requirement (to the FSC) as a reporting issuer. The Fund must register itself as a reporting issuer, and file a prospectus. Reporting issuers must file quarterly financial statements. Regardless of the type of scheme, the

	additional disclosure requirement and the requirements of the Public Offer of Securities shall apply (except for the filing of the prospectus). The timescale for Funds in both cases is usually 3 months. A reporting issuer is an issuer: (e) who has by way of a prospectus, made an offer of securities; (f) who has made a takeover offer by way of an exchange of securities or similar procedure; (g) whose securities are listed on a securities exchange in Mauritius; or (h) who has not fewer than 100 shareholders.
(f) Are there any registration/notification/approval/licensing requirements which apply in respect of the OFI marketing/selling a Fund to the public in your jurisdiction?	No OFI notification or approval requirements apply where a locally licensed intermediary is used. Unless the Fund is recognised by the FSC and the OFI is authorised to act as the manager of the Fund it will be necessary to use a local third party licensed investment dealer/adviser in order to market/sell interests in a Fund to the public in Mauritius. For instance, for a foreign retail Fund to be marketed in Mauritius, a licensed investment dealer has to be appointed and the prospectus of the Fund must be registered with the FSC; or where a foreign retail Fund is recognised by the FSC as a scheme constituted in a foreign jurisdiction and a locally licensed intermediary in Mauritius is used (unless the OFI has been authorised to act as the Fund manager of that scheme in its home jurisdiction). The FSC will also require a disclaimer as to the recognition of foreign Funds not implying that the regulator is vouching for the merits of investing in the scheme. The Guidelines for Advertising and Marketing of Financial Products issued by the FSC on 1 January 2015 regulating the advertising and promotion of financial instruments and Fund products contain specific disclosures relating to advertisements and require certain specific disclosures and disclaimers on the product and the persons promoting them.
(g) Would your answer to section (b) above differ if interests in the Fund being marketed/sold to the public constituted the re-sale of existing interests (i.e. a secondary offering) rather than the offering/placement of a new issue?	No.
(h) Where pursuant to section 6.2(d) above it is possible to market a Fund to the public in your jurisdiction, is it recommended or mandatory to include certain disclaimers/wording in the written marketing materials for a Fund marketed to the public?	Yes. Please see Appendix 1. Where marketing a Recognised Fully Regulated Scheme to the public, the FSC will expect a disclaimer statement for foreign Funds, which is broadly to the effect that the recognition of the

If so, please provide recommended wording in Section C of each of Appendix 1 and Appendix 2 (as applicable) of this Memorandum.	foreign Fund does not imply that the regulator is vouching for the merits of investing in the scheme. There is no sample wording provided in the legislation. As far as a Recognised Foreign CIS is concerned, please find wording at section A of each of Appendix 1 and 2.
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6.3 Investment Management & Advisory Services	
(a) Please confirm whether your response to section 5(c) would apply where the unsolicited approach in respect of Investment Management & Advisory Services is made by an investor which is a member of the public. If applicable, please cross-refer to your answer to section (b) or (d) below.	Yes.
(b) Is marketing/selling of Investment Management & Advisory Services to the public in your jurisdiction permitted without restriction ?	No.
(c) With reference to sections (a) and (b) above, if possible, please provide a definition of “the public” as such term is interpreted in your jurisdiction. For example, “the public” are those investors that are not “professional investors”. Please refer to section 6.2(c) if applicable.	Please see 6.2(c) above.
(d) If the answer to section (b) above is “No”, are there certain requirements that the OFI can fulfil so that marketing/selling by the OFI of Investment Management & Advisory Services to the public in your jurisdiction is permitted?	In relation to the Investment Dealer/Adviser Licensing Requirement (as further described at 5(a) above), the specific provisions which apply to the marketing/provision of IMAS are: Section 29 of the Securities Act provides that, “Subject to section 79A of the FSA, no person shall, by way of business: (a) act or hold himself out as an intermediary in the execution of securities transaction on behalf of other person; (b) trade or hold himself out to trade in securities as principal for his own account with the intention of selling them to the public; or (c) underwrite or distribute or hold himself out to underwrite or distribute securities on behalf of an issuer or holder of securities, without an investment dealer licence issued by the FSC or without being licensed as a representative of an investment dealer by the FSC.” In relation to investment advising, section 30 of the Securities Act states that: “No person shall, by way of business:

	(a) advise, guide or recommend other persons, or hold himself out to advise, guide or recommend other persons, whether personally or through printed materials or by other means, to enter into securities transactions ; or (b) manage or hold himself out to manage, under a mandate, whether discretionary or not, a portfolio of securities, without an investment adviser licence issued by the FSC or without being licensed as a representative of an investment adviser by the FSC”. Portfolio Management and Investment Advice will require an investment adviser licence. Arranging & Execution of Orders on Behalf of Clients can be carried out under an investment dealer's licence. Every person who, by way of business, intends to carry out any of the activities of investment dealer under section 29 of the Act shall apply for a licence as an investment dealer in one of the following categories: (a) full service dealer – authorised to – (i) act as an intermediary in the execution of securities transactions for clients; (ii) trade in securities as principal with the intention of reselling these securities to the public; (iii) underwrite or distribute securities on behalf of an issuer or a holder of securities; (iv) give investment advice which is ancillary to the normal course of his business activities; and (v) manage portfolios of clients; (b) broker – authorised to execute orders for clients, manage portfolios of clients and give advice on securities transactions to clients; (c) discount broker – authorised to execute orders for clients without giving advice; (d) Investment Dealer (Commodity Derivatives Segment); (e) Investment Dealer (Currency Derivatives Segment); (f) Investment Dealer (Government of Mauritius Securities and Bank of Mauritius Securities Segment); (g) Investment Dealer (Equity Segment). Regarding investment dealing activities, please also see answer to 5(c). Therefore, to be able to market/provide Investment Management & Advisory Services to retail investors, the OFI must seek authorisation from the FSC for an investment adviser/dealer licence (which requires the OFI to incorporate a local entity in Mauritius), unless it uses a locally licensed intermediary.
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	In addition, the Advertisement Restriction applies (however, in any event this restriction is read into sections 29 and 30 of the Securities Act). Please see section 5(a) above for the discussion on the Advertisement Restriction. If an OFI is using a locally licensed intermediary to market or sell interests in a fund to the public in Mauritius, the locally licensed intermediary will be in compliance with the Advertisement Restriction by the nature of its licence.
(e) Is there a requirement as to the language the written marketing materials need to be in when marketing/providing Investment Management & Advisory Services to the public and are there any particular requirements that apply in connection to such documents?	Written marketing materials for Investment Management & Advisory Services in Mauritius must be clear, fair, and not misleading, as per Financial Services Commission (“FSC”) guidelines. While there is no strict language requirement when marketing/providing Investment Management & Advisory Services to the public, English or French is typically used as these are the official languages accepted by the FSC. Therefore, it is more appropriate and practical for marketing materials to be prepared in English or French. Materials should disclose relevant risks, fees, and conflicts of interest. Prior approval by the Financial Services Commission may be required depending on the content and target audience.
(f) Where pursuant to section 6.3(d) above it is possible to market/sell Investment Management & Advisory Services to the public in your jurisdiction, is it recommended or mandatory to include certain disclaimers/wording in the written marketing materials? If so, please provide recommended wording in Section C of Appendix 3 of this Memorandum.	There is no recommended wording but any disclaimer/wording must reflect all the principles set out in the Guidelines. These are: <i>Principle 1:</i> Disclosures of fundamental benefits, risks, terms and costs of the product and the remuneration and conflicts associated with the distributor/intermediary through which the product is sold. The Guidelines stipulate that the promoters should ensure that the clients and potential clients are communicated with all the information necessary in order to invest in the particular financial products. The advertisements must convey an equitable message in respect of the returns, benefits and risks associated with the financial products. Benefits should not be given undue prominence compared to risks. The tone of the advertisement shall not undermine the importance of the risks.

	<i>Principle 2:</i> Key information should be delivered, or made available, for free, to an investor before the point of sale, so that the investor has the opportunity to consider the information and make an informed decision about whether to invest. This principle is strongly encouraged by the Guidelines and information provided should be fair, clear, complete, concise and unambiguous. The Guidelines also provide that the information must be timely and consistent with any relevant prospectus, offer or contractual document. <i>Principle 3:</i> Key information should be delivered or made available in a manner that is appropriate for the target investor. This principle is reflected in the Guidelines as they provide that the advertisements of the financial products shall be drafted, bearing in mind the interest of the public in general and to the audience they are aimed in particular. <i>Principle 4:</i> Disclosure of key information should be in plain language and in a simple, accessible and comparable format to facilitate a meaningful comparison of information disclosed for competing products. The Guidelines regulate the words and layout of the information / advertisement to be communicated to the consumers and / or potential consumers (<i>all investors</i>). The Guidelines expressly state that the promoters must avoid extensive use of technical, legal terminology or complex language and the inclusion of excessive details in an advertisement which may not convey a clear message to the consumers and potential consumers, if the likely audience is unfamiliar with the concepts. <i>Principle 5:</i> Key information disclosures should be clear, accurate and not misleading to the target investor. Disclosures should be updated on a regular basis. Disclosures should indeed be clear. Any reference to the involvement of the FSC in the advertisement shall not be read in any way that construes or implies that the FSC has approved the advertisement or has taken the responsibility for the soundness of the financial products or has recommended the financial products. Moreover, any warning statement shall be printed in type of at least the same size as the rest of the text in the advertisement or in smaller text where it is prominently outlined. Adequate information concerning all applicable taxes and the impact of such taxes should also be disclosed. In the case of any applicable cancellation rights, such rights must be adequately disclosed as well, along with the liabilities attached to the exercise of such rights. <i>Principle 6:</i> In deciding what key information disclosure to impose on intermediaries and product producers, regulators should consider who has control over the information that is to be disclosed.
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	The Guidelines shall apply to the promoters of financial products/services offered in Mauritius. Responsibility for the content and monitoring of an advertisement shall rest upon its promoters. Under no circumstances, a promoter may disclaim its liabilities in respect of the accuracy of the advertisement. Where the information is sourced externally and is disclosed as such, the promoter shall ensure that the information is accurate, complete and up-to-date. A promoter is defined as any person licensed, authorised or approved under our laws to carry out or provide any activity or financial services which require a licence, approval, authorisation or registration under such laws.
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7. PRIVATE PLACEMENT REGIME

Questions	Answers
7.1 Private Placement Regime (Funds)	
(a) Is active marketing/selling by an OFI of interests in a Fund (whether Open-Ended or Closed-Ended) to investors in your jurisdiction via a private placement regime permitted? In preparing your answer, please <u>ensure that your analysis covers the following</u> (or if these matters are not relevant to your jurisdiction, please explicitly state that in your response):	An OFI actively marketing/selling interests in a Fund to investors in Mauritius will need to consider: - the Public Offer of Securities Requirement; - the Investment Dealer/Adviser Licensing Requirement; and - the Advertising Restriction. Public Offer of Securities Requirement Please see section 5(a) for a description of the Public Offer of Securities Requirement. Section 69 of the Securities Act sets out that this requirement does not apply to: Recognised Foreign CIS, Recognised Fully Regulated Schemes and "Permitted CIS Activities". Please see section 5(a) for a definition of Permitted CIS Activities. Under section 70 of the Securities Act, a prospectus shall not be needed for; - an issue of securities of a company at or in connection with the formation of the company, where no solicitation is made for the purchase of the securities; - the transmission of securities by succession; - the vesting or transfer of securities by operation of law or by order of a court; - an offer or issue of securities that is a private placement (as discussed below); - an offer or issue of securities that is made only to Sophisticated Investors (as defined below); - an offer or issue of securities only to related corporations of the issuer of the securities; - an offer or issue of Securities by a corporation holding a global business licence, the Securities of which are also listed on a securities exchange in another jurisdiction; - an offer by an issuer- - to allow the exercise of an exchange, conversion, or subscription rights previously issued for securities held by a reporting issuer;

	(ii) under a subscription plan, a share dividend plan or a dividend reinvestment plan; or (iii) under an employee share plan or similar plan and is made only to officers or employees of the issuer, where the issuer has complied with its obligations under the Act, any regulations made under this Act, any regulations made under this Act or any “FSC Rules” as to disclosure to the securities provided that participation in the plan is not a condition of appointment to office by, or employment with, the issuer; (i) an offer of securities acquired under an offer referred to in subsection (1)(d) or (e) where- (i) a sale of securities is made in normal market operations on a securities exchange; (ii) the issuer has complied with its obligations under this Act, any regulations made under this Act or any “FSC Rules” and the rules of the securities exchange as to disclosure in relation to the securities; and (iii) the person making the offer has held the securities for at least the period specified in “FSC Rules” (j) an offer or issue of securities for the purpose of effecting an amalgamation of companies; (k) an offer or issue of securities by a corporation holding a global business licence (only applicable to domestic companies); or (l) an offer or issue of securities by an insurer to persons residing outside Mauritius provided (a) the Commission is notified in accordance with the FSC Rules of the proposed offer or issue at least 15 days before it takes place; and (b) the Commission has not objected, by written notice to the issuer, within 15 days from the date it received the notification under paragraph (a). The above exceptions are referred to hereinafter as the “Private Offering Exemptions.” The most relevant exemptions to OFI marketing via PPR would be where the offer is made to Sophisticated Investors (as defined below) only. We note that there is an exemption for “private placement”. “Private placement” means an offer of Securities where the total cost of subscription or purchase for each person to whom the offer is made is at least equal to the amount determined by the “FSC Rules” and where each person subscribes or purchases for his own account and no publicity is made by the person making the offer”.
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	The private placement exemption is set out in the Securities (Preferential Offer) Rules 2017. The Securities (Preferential Offer) Rules 2017 does not apply to Closed-Ended Funds or a CIS or to a collective scheme and that is established in a foreign country where such marketing is undertaken: (a) by a CIS manager established in Mauritius; or (b) by a person carrying out the activities of an investment dealer outside Mauritius and the marketing to a Sophisticated Investor in Mauritius. However, provisions of the Securities (Preferential Offer) Rules 2017 shall not apply to an offer of securities by an issuer incorporated or established outside Mauritius or an issuer who exclusively offers its securities to persons resident outside Mauritius. Therefore this exemption is unlikely to be applicable to an OFI cross-border marketing Funds into Mauritius and the OFI is more likely to use the Sophisticated Investor Exemption to the Public Offer of Securities Requirement. The Securities Act defines ‘Sophisticated Investors’ as follows: (a) the Government of Mauritius; (b) a statutory authority or an agency established by an enactment for a public purpose; (c) a company, all the shares in which are owned by the Government of Mauritius or a body specified in paragraph (b); (d) the government of a foreign country, or an agency of such government; (e) a bank; (f) a CIS manager; (g) an insurer; (h) an investment adviser; (i) an investment dealer; (j) an investor that warrants, at the time of entering into a securities transaction, that: (i) its ordinary business or professional activity includes the entering into securities transactions, whether as principal or agent; (ii) in case he is a natural person, his individual net worth or joint net worth with his spouse exceeds one million USD, or its equivalent in another currency; or (iii) it is an institution with a minimum amount of assets under discretionary management of 5 million USD, or its equivalent in another currency; or (k) a person declared by the FSC to be a sophisticated investor.
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Investment Dealer/Adviser Licensing Requirement

Whilst Soliciting Sophisticated Investors will not trigger the Investment Dealer/Adviser Licensing Requirement, related active marketing selling activities may trigger this restriction and the OFI can only market interests in a Fund if it uses a locally licensed intermediary in Mauritius. This requirement does not apply where the Fund is a Recognised Foreign CIS or a Recognised Fully Regulated Scheme and the OFI is authorised to act as manager of the Fund in its home jurisdiction. Please see section 5(a) for more information on this requirement.

The Investment Dealer/Adviser Licensing Requirement is triggered where the OFI "holds itself out" as an Investment Dealer or an Investment Adviser. There is no additional guidance on what constitutes "holding out" and the safest course of action is therefore to use a locally licensed intermediary.

As mentioned at 6.2(d)(i) above, a foreign scheme targeted to retail investors via the private placement regime may be recognised by the FSC under section 101 of the Securities Act (however, note, if the OFI is not the Fund manager of the recognised scheme, the OFI will require an Investment Dealer/Adviser Licence).

The Recognised Foreign CIS may be recognised as:

(i) **A Global Scheme;**

A global scheme is a Collective Investment Scheme (CIS) that holds a global business licence (i.e., conducting its business mainly outside of Mauritius) and it may or may not be regulated in another jurisdiction. A Regulated Global Scheme is a Global Scheme that is authorised to carry out the activities of a CIS by the FSC, however it does not fall within the specific categories of a Professional, Specialised or Expert CIS.

(ii) **A Professional Collective Investment Scheme ("Professional CIS");**

A Professional CIS is a CIS that offer their shares to (a) to sophisticated investors (please see 7.1(a) above), or (b) as a private placement.

A Closed-Ended Fund that is not a reporting issuer is not listed, does not make a public offering, nor does it have 100 or more shareholders is classified as a Professional CIS and subject to the requirements relating to Professional CIS.

(iii) **Specialised CIS;**

Specialised CIS are CIS that invest in real estate, derivatives, commodities or other products authorised by the FSC.

(iv) **Expert Fund;**

	A Collective Investment Scheme can apply to the FSC to be authorised as an Expert Fund based on the condition that the scheme is only available to expert investors. The Regulations define an “expert investor” as either (a) an investor that makes minimum initial investment for his own account in an amount of not less than USD100,000 or (b) a Sophisticated Investor as defined by the Securities Act. (please see above) (v) Closed-ended Funds which are not reporting issuers. A closed-ended fund is defined by the Securities Act as being an arrangement or scheme, other than a CIS, constituted in such legal form approved by the FSC, whose object is to invest funds either collected from subscribers during an offering made under Part V of the Securities Act, or from Sophisticated Investors and to invest those funds in Securities, financial or non-financial assets, or real property, as may be approved by the FSC. Generally, an investor in a Closed-ended fund is not entitled to redeem their investment. Advertisement Restriction Please see section 5(a) for information on the Advertisement Restriction.
(i) the impact (if any) of the marketing/sale being undertaken in respect of an Open-Ended or a Closed-Ended Fund. Where the rules of the private placement regime distinguish between Open-Ended or Closed-Ended Funds, please outline how the rules of your jurisdiction define an Open-Ended or a Closed-Ended Fund.	Please see 7.1(a) above.
(ii) the impact (if any) of the marketing/sale being undertaken in respect of a Fund regulated in a country other than your jurisdiction e.g. 1940 Act Fund, UCITS Fund.	Please see 6.2(f) above.
(iii) available exemptions which permit marketing/sale of Funds to investors (e.g. based on type of investor, minimum investment amount, small number of investors, existing customer, tolerated practice, etc). If an exemption is available, please set out the criteria which must be satisfied in order to utilise it. Please include a discussion of any exemptions available to individual investors on the basis that they are high net worth/sophisticated . Please	Please see 7.1(a) above.

comment on both formal “ black-letter law ” exemptions and accepted practice .	
(iv) the relevant criteria for determining whether an investor is in your jurisdiction for the purposes of determining how the private placement regime applies (e.g. the investor is incorporated, domiciled, has employees in your jurisdiction).	There are no set criteria for determining whether an investor is in your jurisdiction. One must consider the definition of “Solicitation” and “advertisement” as referred to at 5(a) above and whether the person (based overseas) to whom the communication is addressed is an agent of a person in Mauritius or is an independent investor.
(v) any sensitivities depending on whether the investor is a potential or an existing client.	Please see 5(a)(iii) above.
(b) Are there registration/notification/approval/licensing requirements which apply in respect of a Fund before it can be marketed/sold to investors in your jurisdiction?	Yes in relation to compliance with the Public Offer of Securities Requirements unless the marketing is conducted in accordance with a Private Offering Exemption in which case no notification/approval is required. Where the OFI seeks to apply to the FSC for recognition of the foreign Fund, please see section 6.1(d)(i) and below.
Please outline what activity will trigger such requirements and the practical steps required to fulfil any such requirements (including links to relevant forms/information on the relevant regulator’s website).	
(i) Please outline any applicable time periods (e.g. the amount of time between the submission of an application and the issuance of an approval).	Usually around 1 to 3 months – for the licensing of the Fund. Not applicable where marketing is conducted in accordance with an exemption.
(ii) Are any fees payable, whether related to the: (A) initial notification/registration; or (B) on an ongoing basis?	<u>Closed-ended fund:</u> Cost- Registration fees-USD 1,200 Fixed Annual Fees- USD 3,700 <u>Professional CIS:</u> Cost (custodian)- Registration fees-USD 1,000 Fixed Annual Fees- USD 2,500 (CIS Manager)- Registration fees-USD 1,000 Fixed Annual fees- USD 2,500 CIS Administrator-Registration fees-USD 500

	Fixed Annual fees-USD 1,200 Not applicable where marketing is conducted in accordance with an exemption to the Public Offering of Securities Requirement.
(iii) Please could you provide link to the local regulator's website (even if in local language only) where information and/or notification/approval forms are set out for marketing a Fund via the private placement regime.	https://www.fscmauritius.org/licensing-supervision/codified-list
(iv) Is there a requirement as to the language the Fund documentation needs to be in when marketing/selling pursuant to the private placement regime and are there any particular requirements that apply in connection to such documents?	Fund documentation used when marketing or selling under the private placement regime must be clear, accurate, and not misleading, and must include full disclosure of all material information, including risks, fees, and any conflicts of interest. While there is no strict language requirement for the language of Fund documentation under the private placement regime, English or French is typically used as these are the official languages accepted by the Financial Services Commission. Therefore, it is more appropriate and practical for the Fund documentation under private placement regime to be prepared in English or French. Materials should disclose relevant risks, fees, and conflicts of interest. Depending on the fund structure and target investors, prior approval from the Financial Services Commission may be required.
(c) Are there registration/notification/approval/licensing requirements which apply in respect of the OFI marketing/selling a Fund in your jurisdiction?	Yes. As mentioned above, the OFI must: be licensed as an investment dealer i.e. comply with the Investment Dealer/Adviser Licensing Requirement (which requires the OFI to incorporate in Mauritius) or use a locally licensed intermediary unless the OFI is authorised as manager of the Fund. This carve out only applies where the OFI is seeking to have the Fund recognised by the FSC to be marketed to investors in Mauritius – see Recognised Foreign CIS and Recognised Fully Regulated Scheme above at section 6.2(d)(i); or The OFI should also note the Advertising Restriction (please see sections 5(a) and 7.1(a) above).

	Every person who, by way of business, intends to carry out any of the activities of investment dealer under section 29 of the Securities Act shall apply for a licence as an investment dealer in one of the following categories- (a) <i>Full service dealer</i>- authorised to- (i) Act as an intermediary in the execution of securities transactions for clients; (ii) Trade in securities as principal with the intention of reselling these securities to the public; (iii) Underwrite or distribute securities on behalf of an issuer or a holder of securities; (iv) Give investment advice which is ancillary to the normal course of his business activities; and (v) Manage portfolios of clients; (b) <i>Broker</i>- authorised to execute orders for clients, manage portfolios of clients and give advice on securities transactions to clients. An application form with the following information needs to be submitted to the FSC for the purposes of obtaining any one of the above mentioned licence categories: a. Details of the applicant; b. Registered Office / Place of Business in Mauritius; c. Details relating to Directors, Secretary, Auditor, Officers, Substantial Shareholder and Ultimate beneficial owners; d. Details of any other licence(s)/registration(s) which the applicant holds and name of the licence(s) and issuing authority and any restriction imposed; e. [Evidence] that the applicant has established procedures designed to prevent conflicts of interest and the use of inside information by an effective segregation of its different activities; and f. The procedures mentioned in paragraph (e) shall ensure that the investment decisions concerning the portfolio of clients shall not be communicated or be available to any unauthorised third party. The applicant must also demonstrate that its internal structures as its organisation, its technical and financial means and its staffing are appropriate and sufficient for the efficient operation of its business. Where the applicant is a subsidiary of another company, it may be required to have
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	some of its employees or officers to perform independently from the parent company. The applicant must also establish procedures to ensure that non-public information is strictly controlled and not communicated to unauthorised third parties. The following additional information should also be filed with the FSC: (c) certified copy of the resolution of the board of directors authorising two members of the board to sign the application and appointing an officer responsible and a manager responsible for any branch office; (d) copy of the constitution or similar constitutive document; (e) complete description of the proposed activities: type of customers, products and services to be offered (brokerage, CIS securities, underwriting, portfolio management, etc.); (f) amount, type and distribution of the shares of the applicant, including the list of shareholders and the number of shares owned directly or indirectly; (g) the applicant wishes to offer portfolio management services, a copy of a model of the contract to be signed between the investment dealer or investment adviser (unrestricted) and the client; (h) copy of the contract relating to internet trading, if any; (i) copy of the internal procedures manual; (j) details of membership, applications for membership or shareholding in a securities exchange, a clearing and settlement facility, a securities trading system or a self-regulatory organisation or of applications for membership; (k) detailed description of systems and procedures to prevent: conflicts of interest, money laundering and financing of terrorism; (l) personal questionnaire form specified in the “FSC Rules” for every officer or proposed officer, shareholder and beneficial owner of the applicant; and (m) an independent compliance report. This report must be submitted by all licensees (those holding a global business licence or a management licence). The specific terms and conditions governing this requirement are pending publication by the Financial Services Commission.
Please outline the practical steps required to fulfil any such requirements in particular:	

(i) please provide a link to relevant forms/information on the relevant regulator's website) (even if in the local language only); and	https://www.fscmauritius.org/licensing-supervision/codified-list
(ii) are there any possible exemptions from such requirements?	When marketing/selling to the public, there are no exemptions to these requirements which an OFI can avail of although they can be avoided through use of a locally licensed intermediary or where the Fund has been recognised in Mauritius. Please see section 6.2(d)(i) above for further details. In addition, when marketing/selling interests in a Fund to investors in Mauritius, the Public Offer of Securities Requirements will apply unless an exception applies. Where the offer of Securities is to the public, see section 7.1(a) above for details of the Private Offering Exemptions to the Public Offer of Securities Requirements.
(d) (i) Is it (A) necessary or (B) permitted to use a local intermediary in order to market/sell interests in a Fund to an investor in your jurisdiction and, if so, on what basis? Please consider the position in relation to:	It is not necessary to use a locally licensed intermediary to market/sell interests in a Fund to any investor that is a Sophisticated Investor in Mauritius. It is permitted to use a locally licensed intermediary. Whilst Soliciting Sophisticated Investors will not trigger the Investment Dealer/Adviser Licensing Requirement and the Advertising Restriction, related active marketing/selling activities may trigger these requirements. The OFI should be licensed as an investment dealer in Mauritius (note that this requires the OFI to have a local presence in Mauritius) or as a foreign investment dealer under the Securities (Authorization of Foreign Investment Dealers) Rules 2010 (where it wishes to trade on a Securities exchange) unless a locally licensed intermediary is appointed. Where the Fund is recognised by the FSC and the OFI is authorised to act as the manager of the Fund in its home jurisdiction, it is not necessary to use a local third party licensed investment dealer in order to market/sell interests in a Fund to investors in Mauritius as the manager of such Fund can conduct marketing/selling activity itself without using a locally licensed intermediary. This carve out only applies where the OFI is seeking to have the Fund recognised by the FSC to be marketed to investors in Mauritius.
(A) a licensed third party intermediary;	Please see (d) above.
(B) an unlicensed local third party intermediary; or	Please see (d) above. An unlicensed local third party intermediary is not sufficient.
(C) a branch, representative office or other form of regulated place of business of the OFI in your jurisdiction.	Please see (d) above. A branch, representative office or other form of regulated place of business of the OFI is not sufficient.

(ii) Where the key entity marketing/selling the Fund in your jurisdiction is in compliance with local licensing requirements, is it permitted for the sub-advisor/manager of the Fund to participate in the marketing activities (e.g. via Fly-In Meeting, telephone call, email) without itself being licensed in your jurisdiction? For example, can the sub-advisor/manager participate in the marketing/selling activities where the locally licensed entity acts as its chaperone?	Fly-In meeting/Call/Email Please see sections 5 to 7 above for a discussion on the Investment Dealer/Adviser Licensing Requirement, the Advertising Restriction and the Public Offering of Securities Restriction. The OFI should note the Guidelines set out in section 6.3(e). Whereas solicitation is permitted in respect of Sophisticated Investors, in relation to other investors, assuming the meeting does not constitute an act of distributing of Securities on behalf of the issuer and does not solicit a retail investor to enter into Securities transactions, and that the sub-advisor/manager is acting for and on behalf of the locally licensed entity, fly-in meetings can be conducted on a private basis without triggering the licensing and registration requirements described in sections 5 to 7 above and frequency and length of meetings should be as low/short as possible. Meeting discussions should not involve execution of binding contracts whilst onshore. If the sub-advisor/manager of the Fund is not acting for and on behalf of the locally licensed entity, the licensing and registration requirements described in sections 5 to 7 above will be triggered.
(e) Are there any other requirements (including any ongoing requirements) in order to comply with the rules/guidance applicable to the private placement regime in your jurisdiction for Funds not dealt with elsewhere in this Part B of the Memorandum? For example are there any particular requirements that apply to a special category of investor in your jurisdiction which an OFI should bear in mind before marketing to such investors (i.e. based upon an investor being an insurance company, a sovereign wealth fund, an endowment, a foundation or a pension fund). Please do not refer to requirements applicable to retail investors which are dealt with in section 6 of this Memorandum.	No.
(f) Would your answer to question 7.1 differ if interests in the Fund being marketed/sold constituted the re-sale of existing interests (i.e. a secondary offering) rather than the offering/placement of a new issue?	No.
UCITS Funds	

(g) Please confirm whether your response to section 5(a) would apply where the unsolicited approach is made in respect of a UCITS Fund.	Yes, section 5(a) would be applicable.
(h) Where it is possible to market/sell a Fund pursuant to a regime described in Section 7.1(a) or 6.2(d), would the type of Fund that can be marketed/sold include a UCITS Fund?	Yes.
(i) If the answer to 7.1(i) is “yes”, please briefly outline or cross-refer to the relevant section if the information is contained elsewhere in this Memorandum:	
(i) The notification/approval process (if any);	Please refer to 7.1(c).
(ii) Timescales;	Please refer to 7.1(b)(i).
(iii) Costs, including any fees: (A) initially payable; and (B) payable on an ongoing basis;	Please refer to 7.1(b)(ii).
(iv) What language does the Fund documentation need to be in;	English or French. Where a document is in a language other than English or French, it should be translated into one of these languages and certified by a qualified translator.
(v) Whether a local presence is required;	Please refer to 6.2(d)(iv) above.
(vi) Whether local agents and/or distributors are required; and	Please refer to 6.2(d) above.
(vii) Initial and ongoing filing requirements.	Please refer to 6.2(e) above.
(j) Where it is possible to market/sell a UCITS Fund pursuant to the regime described in Section 7.1(a) or 6.2(d) in your jurisdiction are there any registration/notification/approval/licensing requirements which apply in respect of the OFI marketing/selling the UCITS Fund in your jurisdiction?	Please see sections 5(a) and 7.1(a) for information on the Investment Dealer/Adviser Licensing Requirement and the Advertisement Restriction and section 6.3(f) for more information on the Guidelines. Active marketing/selling activities may trigger these restrictions and the OFI will need to use a locally licensed intermediary unless the Fund is recognised by the FSC and the OFI is authorised to act as the manager of the Fund in its home jurisdiction. In this scenario the manager of such scheme can conduct the marketing/selling activities itself without using a locally licensed intermediary.

	Where a public offering is made the UCITS Fund must register itself as a reporting issuer and will be subject to additional disclosure requirements. For instance, notification to the FSC of any material changes in their business affairs, details regarding shareholding etc. With respect to foreign UCITS Funds, the FSC will expect a disclaimer such that it is not implied that the FSC vouches for the merits of investing in the Fund. Please refer to Appendices 1 and 2. Additional requirements/disclosures may also be applicable under the Guidelines for Advertising and Marketing of Financial Products 2015. Please also refer to 7.1(c).	
(k) Where it is possible to market/sell a UCITS Fund pursuant to a regime described in Section 7.1(a) or 6.2(d) in your jurisdiction, is it recommended or mandatory to include certain disclaimers/wording on the written marketing materials. If so, please provide recommended wording in Section A of Appendix 1 of this Memorandum.	Yes, please refer to section A of each of Appendix 1 and 2	
7.2 Sensitivities based on Structure and/or Investment Strategy (Funds)		
What we are seeking to draw out in this section is whether there are any particular requirements or restrictions that only apply to certain sorts of Fund when they are marketed or sold in your jurisdiction. You may have already dealt with these issues elsewhere in the Memorandum in which case please include a cross-reference to the applicable response.		
(a) Are there particular requirements or restrictions which apply where an OFI wishes to market/sell a Fund in your jurisdiction where such Fund is structured as: Please indicate your response by answering Yes/No for each type of fund structure.		
OPEN-ENDED FUND		
	Yes/ No	If the answer is “Yes”, please include a brief description and/or cross-reference to discussion of the applicable requirement or restriction.
corporate (unlisted)	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).
CLOSED-ENDED FUND		
	Yes/ No	If the answer is “Yes”, please include a brief description and/or cross-reference to discussion of the applicable requirement or restriction.
corporate (unlisted)	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).

corporate (listed on an exchange including an ETF)	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)). Also, the OFI is required to hold a foreign investment dealer licence where it seeks to trade on a recognised stock exchange. The Securities (Instruments) Regulations 2013 clarified the definition of “securities” in the Securities Act, in relation to an instrument, to include an exchange traded fund. It does not make a difference where the Fund is established or listed. There is no provision with regards to the automatic classification of a listed fund as being offered to the public. However, the criteria of a fund being a retail fund or aimed at Sophisticated Investors is a consideration for any regulatory restriction.
limited partnership	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).
contractual	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).
trust	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).
sub-fund of umbrella	No	However, please note that the FSC may impose additional conditions where such Fund is applying

corporate (listed on an exchange including an ETF)	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)). The Securities (Instruments) Regulations 2013 clarified the definition of “securities” in the Securities Act, in relation to an instrument, to include an exchange traded fund. It does not make a difference where the Fund is established or listed. There is no provision with regards to the automatic classification of a listed fund as being offered to the public. However, the criteria of a fund being a retail fund or aimed at Sophisticated Investors is a consideration for any regulatory restriction.
limited partnership	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).
contractual	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).
trust	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).
sub-fund of umbrella	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be

		to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).				a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).
master/feeder	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).		master/feeder	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).
Funds whose interests/units/shares are tokenised	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).		Funds whose interests/units/shares are tokenised	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).
other		However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).		other	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).

(b) Are there particular additional **requirements or restrictions** which apply where an OFI wishes to market/sell a Fund in your jurisdiction where such Fund's **investment strategy** is listed below, or involves investments in those types listed below.

Please indicate your response by answering Yes/No for each type of fund investment or strategy.

OPEN-ENDED FUND				CLOSED-ENDED FUND		
	Yes/ No	If the answer is "Yes", please include a brief description and/or cross-reference to discussion of the applicable requirement or restriction.			Yes/ No	If the answer is "Yes", please include a brief description and/or cross-reference to discussion of the applicable requirement or restriction.
hedge fund strategy	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).		hedge fund strategy	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).

private equity investments	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).
real estate investments	No	Where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)) and has been approved as a collective investment scheme or a closed-ended Fund, the provisions of the Securities (Real Estate Investment Trusts) Rules 2021 will apply. Some of the requirements under the Securities (Real Estate Investment Trusts) Rules 2021 include:(i) the prospectus of the REIT shall specify that the REIT shall receive a minimum amount of subscriptions of at least 90 per cent of the total amount to be raised from investors so as to begin operating the REIT, or such higher amount as may be disclosed in its prospectus; (ii) a REIT shall be listed on an Official Exchange in Mauritius within a period of 6 months after it has been duly authorised to operate as a REIT by the Commission; and (iii) a REIT shall invest at least 75 per cent of its gross asset value in income producing real estate assets.
infrastructure investments	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).
debt or equity instruments	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).

private equity investments	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).
real estate investments	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).
infrastructure investments	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).
debt or equity instruments	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).

derivative investments	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).
fund of funds strategy	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).
environmental, social and governance (ESG) strategy	No.	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).
crypto-asset strategy	Yes	The FSC recognises that funds and management thereof may entail crypto based assets. In the FSC's Guidance Note entitled "<i>Recognition of digital assets as an asset-class for investment by Sophisticated and Expert Investors</i>", it recognises that digital assets including cryptocurrencies may constitute an asset-class for investment by: (i) Sophisticated Investors; (ii) expert investors; (iii) expert funds; (iv) specialised collective investment schemes; and (v) professional collective investment schemes. However, the guidance goes on to state that: "<i>given the high-risk nature of investments in Digital Assets and Cryptocurrencies, the FSC considers that they may not be suitable for investment by retail investors.</i>"
Sharia compliant strategy	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).

derivative investments	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).
fund of funds strategy	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).
environmental, social and governance (ESG) strategy	No.	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).
crypto-asset strategy		The FSC recognises that funds and management thereof may entail crypto based assets. In the FSC's Guidance Note entitled "<i>Recognition of digital assets as an asset-class for investment by Sophisticated and Expert Investors</i>", it recognises that digital assets including cryptocurrencies may constitute an asset-class for investment by: (i) Sophisticated Investors; (ii) expert investors; (iii) expert funds; (iv) specialised collective investment schemes; and (v) professional collective investment schemes. However, the guidance goes on to state that: "<i>given the high-risk nature of investments in Digital Assets and Cryptocurrencies, the FSC considers that they may not be suitable for investment by retail investors.</i>"
Sharia compliant strategy	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).

private credit/non-bank lending strategy	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).
other	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).

private credit/non-bank lending strategy	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).
other	No	However, please note that the FSC may impose additional conditions where such Fund is applying to be a recognised foreign CIS or fully regulated scheme (see section 6.2(d)(i)).

7.3 Private Placement Regime (Investment Management & Advisory Services)	
(a) Is it possible for an OFI to actively market/provide Investment Management & Advisory Services to investors in your jurisdiction and, if so, on what basis? Please note that the provision of the Investment Management & Advisory Services of Investment Advice and Arranging are specifically dealt with separately in sections 8.9 and 8.9. It is therefore not necessary to repeat this information here.	Please see 7.1(c) above regarding investment dealing and advising activities. Whilst Soliciting Sophisticated Investors will not trigger restrictions, related active marketing/provision of IMAS activities to investors in Mauritius requires the OFI to comply with the Investment Dealer/Adviser Licensing Requirement. The safest course of action is to appoint a locally licensed intermediary. Please see section 5(a) for information on the Advertisement Restriction and section 6.3(f) for more information on the Guidelines.
In preparing your answers please <u>ensure that your analysis covers the following</u> (or if these matters are not relevant to your jurisdiction, please explicitly state that in your response):	
(i) available exemptions applicable to the marketing or provision of Investment Management & Advisory Services to investors (e.g. based on type of investor, minimum investment amount, small number of investors, existing customer, tolerated practice, etc). If an exemption is available, please set out the criteria which must be satisfied in order to utilise it. Please include discussion of any exemptions available to individual investors on the basis that they are high net worth/sophisticated. Please comment on both formal “ black-letter law ” exemptions and accepted practice .	There are no exemptions to the Investment Dealer/Adviser Licensing Requirement and the Advertising Restriction. These requirements can be avoided through the use of a locally licensed intermediary. Regarding investment advising activities, section 30 of the Securities Act states that: No person shall, by way of business: (a) advise, guide or recommend other persons, or himself out to advise, guide or recommend other persons, whether personally or through printed materials or by other means, to enter into securities transactions ;or (b) manage or hold himself out to manage, under a mandate, whether discretionary or not, a portfolio of securities, without an investment adviser licence issued by the FSC or without being licensed as a representative of an investment adviser by the FSC. There are two types of licences, namely: - Investment Adviser (Unrestricted) Licence; and - Investment Adviser (Restricted) Licence.
(ii) the relevant criteria for determining whether an investor is in your jurisdiction for the purposes of determining how the private placement regime applies (e.g. the investor is	There are no set criteria for determining whether an investor is in your jurisdiction. One must consider the definition of “Solicitation” and “advertisement” as referred to at 5(c) above and

incorporated, domiciled, has employees in your jurisdiction).	whether the person (based overseas) to whom the communication is addressed to is an agent of a person in Mauritius or is an independent investor.
(iii) any sensitivities depending on whether the investor is a potential or an existing client.	Please see 5(a)(iii) above.
(b) Are there registration/notification/approval/licensing requirements which apply in respect of the OFI marketing/providing Investment Management & Advisory Services to investors in your jurisdiction? Please outline the practical steps required to fulfil any such requirements (including links to relevant forms/information on the relevant regulator's website) plus any possible exemptions from such requirements.	Please see 7.3(a)above. Active marketing/provision activities may trigger the Investment Dealer/Adviser Requirement and the Advertising Restriction when any Advertisement is published. For both Investment Adviser (Unrestricted) Licence and Investment Adviser (Restricted) Licence, the following documents are required: • A formal application must be made under section 30 of the Securities Act; • Duly filled in "authority form" and written and signed consent of each promoter, officer or controller; • Details of any other licence (s)/registration(s) which the applicant holds and name of their licence(s) and issuing authority and any restriction imposed; • Statutory filings lodged with the Registrar of Companies for the Incorporation/Registration of the applicant in Mauritius; • Business plan; • CV details; • PQ Form; • Valid passport copy or NID; • Proof of address; • Proof of beneficial owner(s); • Applicant must maintain a minimum stated unimpaired capital (as per Securities (Licensing) Rules 2007). • https://www.fscmauritius.org/licensing-supervision/codified-The following is required for an investment dealer licence: • A formal application must be made under section 29 of the Securities Act; • Prescribed processing and/or annual fee; • Details of any other licence(s)/registration(s) which the applicant holds; • Name of the licence(s) and issuing authority, and any restrictions(s) imposed;

	• Details of applicant; • PQ Form; • Applicant to specify whether it intends to also provide underwriting services and/or custody services to clients; and • Applicant to describe and demonstrate, with supporting documents or information, how it will satisfy its obligation under III of the Securities (Licensing) Rules 2007. • The investment dealer also needs to appoint an investment dealer representative; • The investment dealer representative must have a degree in the relevant field and at least 8 years of relevant experience in investment business; • The investment dealer must maintain a minimum stated unimpaired capital (as per Securities (Licensing) Rules 2007). • ; https://www.fscmauritius.org/licensing-supervision/codified-list
(c) (i) Is it (A) necessary or (B) permitted to use a local intermediary in order to market/provide Investment Management & Advisory Services to an investor in your jurisdiction and, if so, on what basis? Please consider the position in relation to:	Please see section 7.1(d) which applies equally here.
(A) a licensed third party intermediary;	Please see section 7.1(d) which applies equally here.
(B) an unlicensed local third party intermediary; or	Please see section 7.1(d) which applies equally here.
(C) a branch, representative office or other form of regulated place of business of the OFI in your jurisdiction.	Please see section 7.1(d) which applies equally here.
(ii) Where the key entity marketing/selling the IMAS in your jurisdiction is in compliance with local licensing requirements, is it permitted for a sub-advisor of an investment strategy e.g. sub-advisor of a Managed Account, to participate in the marketing activities (e.g. via Fly-In Meeting, telephone call, email) without itself being licensed in your jurisdiction?	Fly-In meeting/Call/Email Assuming the meeting does not constitute an act of providing IMAS to retail investors under 7.3 (a) (i) above, and that the sub-advisor/manager is acting for and on behalf of the locally licensed entity, fly-in meetings can be conducted on a private basis without triggering the licensing and registration requirements under the Investment Dealer/Adviser Licensing Requirement and frequency and length of meetings should be as low/short as possible. Meeting discussions should not involve execution of binding contracts whilst onshore.

For example, can the sub-advisor/manager participate in the marketing/selling activities where the locally licensed entity acts as its chaperone ?	Where the meeting constitutes marketing/providing IMAS the restrictions set out in section 7.3(a) above will be triggered. If the sub-advisor/manager of the Fund is not acting for and on behalf of the locally licensed entity, the licensing and registration requirements described above apply.	
(d) Is there a requirement as to the language the written marketing materials need to be in when marketing/providing Investment Management & Advisory Services pursuant to the routes described in this section 7.3 and are there any particular requirements that apply in connection to such documents?	Written marketing materials for the marketing/providing Investment Management & Advisory Services must include full disclosure of all material information, including risks, fees, and any conflicts of interest. While there is no strict language requirement for the language of written marketing materials used in the marketing/providing of Investment Management & Advisory Services, English or French is typically used as these are the official languages accepted by the Financial Services Commission. Therefore, it is more appropriate and practical for the written marketing materials to be prepared in English or French. Written marketing materials should disclose relevant risks, fees, and conflicts of interest. Depending on the fund structure and target investors, prior approval from the Financial Services Commission may be required.	
(e) Are there any other requirements (including any ongoing requirements)?	No.	
7.4 Sensitivities based on Investment Strategy (Investment Management & Advisory Services)		
What we are seeking to draw out in this section is whether there are any particular requirements or restrictions that only apply to certain sorts of Investment Strategy when Investment Management & Advisory Services are marketed or sold in your jurisdiction. You may have already dealt with these issues elsewhere in the Memorandum, in which case please include a cross-reference to the applicable response.		
(a) Are there particular additional requirements or restrictions which apply where an OFI wishes to market/provide Investment Management & Advisory Services using the private placement regime in your jurisdiction where the investment strategy is listed below, or involves investments in those types listed below. Please indicate your response by answering Yes/No for each type of investment or strategy.		
INVESTMENT MANAGEMENT & ADVISORY SERVICES		
	Yes/No	If the answer is “Yes”, please include a brief description and/or cross-reference to discussion of the applicable requirement or restriction.

hedge fund strategy	No	
private equity investments	No	
real estate investments	No	
infrastructure investments	No	
debt or equity instruments	No	
derivative investments	No	
fund of funds strategy	No	
environmental, social and governance (ESG) strategy	No	
Sharia compliant strategy	No	
private credit/non-bank lending strategy	No	
other	No	

7.5 Investment Management & Advisory Services in respect of Single Investor Vehicles, Segregated Managed Accounts and Family Offices

This question focuses on investment structures and investment vehicles which may fall outside the definition of Fund.

- | | |
|--|--|
| <p>(a) Please confirm whether the marketing or provision of the following investment structures/investment vehicles will be caught by the rules applicable to the marketing/provision of Investment Management & Advisory Services in your jurisdiction OR whether other domestic fund or marketing/offering restrictions will apply:</p> <ul style="list-style-type: none"> (i) a Single Investor Vehicle, which makes investments into financial instruments or assets. (ii) a Segregated Managed Account, which makes investments into financial instruments or assets. | <p>If the marketing of any single investor vehicle/segregated managed account or family office involves the marketing of Securities, the provisions set out at 5(a) above including the Public Offer of Securities Requirement will apply. In addition, the marketing or provision of these investment vehicles will be caught by the rules applicable to the marketing/provision of IMAS i.e. the Investment Dealer/Adviser Licensing Requirement and the Advertisement Restriction. Please see sections 5(a) and 7.1(a) above.</p> |
|--|--|

(iii) a family office undertaking, which makes investments into financial instruments or assets. If other restrictions or rules apply, please outline (briefly) the position under local law and outline the key exemptions (if any).	
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8. MARKETING ACTIVITIES

Questions	Answers
The purpose of sections 5, 6 and 7 of Part B of this Memorandum is to identify to whom Funds or Investment Management & Advisory Services can be marketed or sold in your jurisdiction. This section 8 addresses particular requirements which may apply depending on how such products or services are marketed or sold. This section 8 also includes some questions on specific scenarios that may be relevant to an OFI in relation to its cross-border activities.	
8.1 Written Materials	
(a) Can marketing/selling of a Fund or Investment Management & Advisory Services to investors in your jurisdiction be conducted through the distribution of written marketing materials (whether by email or by physical delivery of documents)?	No. Whilst Soliciting Sophisticated Investors will not trigger restrictions, related active marketing/selling activities of a Fund/IMAS by any means will trigger the licensing and registration requirements described in sections 5 to 7 above (i.e. the Investment Dealer/Adviser Licensing Requirement, and the Advertisement Restriction where the OFI holds itself out as an Investment Dealer or an Investment Adviser). In the case of Funds, it is also necessary to consider the Public Offer of Securities Requirements (unless there is an applicable exemption). If the Fund/OFI seeks to avoid local registration/licensing, the marketing and sale should occur: (i) on a cross-border basis AND (ii) on a reverse-solicitation basis Any advertisement that constitutes an Advertisement under the FSA must comply with the Advertising Restriction. Please see section 5(a) for information on the Advertisement Restriction and section 6.3(f) for more information on the Guidelines. The definition of Advertisement includes the distribution of written marketing materials used for the marketing or promotion of financial products to investors. Alternatively, the marketing and sale may occur through the use of a local licensed intermediary. Otherwise, in the case of a Fund, where the Fund has been recognised by the FSC as a Recognised Foreign CIS or Recognised Fully Regulated Scheme, and the OFI is the Fund manager of such scheme, marketing or selling of such Fund can be conducted through the distribution of written marketing materials. In the scenario of the Recognised Fully Regulated Scheme, the prospectus will have been filed with the regulator. In the scenario of the Recognised Foreign CIS, it will depend on the licensing conditions. If the scheme has not been licensed as one that can be marketed to the public, the OFI will need to ensure its marketing falls into a Private Offering Exemption to the Public Offer of Securities Requirements. If the OFI is the manager of a Fund that is a Recognised Foreign CIS or a Recognised Fully Regulated Scheme, it does not need to comply with the Investment Dealer/Adviser Licensing

	Requirement when marketing/selling a Fund however if the scheme has not been licensed as one that can be marketed to the public, the OFI must comply with the Public Offering of Securities Requirements, unless an exemption applies.
Please could you confirm whether your above response would apply to the following types of written marketing materials and, if applicable, note any particular considerations that would apply to that particular type of document:	
(i) offering memorandum (may also be referred to as the “private placement memorandum” or “information memorandum”);	Yes, the above would apply.
(ii) marketing presentation (may also be referred to as the “pitch book” or “marketing deck”). Such presentations may include: • Investment strategy/philosophy/process • Biographies of key investment team members • Track record • Case studies of specific investments • Operational infrastructure/list of service providers terms	Yes, the above would apply.
(iii) tear sheet (may also be referred to as the “fact sheet” or “profile”) Such tear sheets may include: • A brief description of strategy • Summary statistics • Terms • Service providers For the purposes of this question, please assume that the tear sheet includes the name of the Fund.	Yes, the above would apply, including where the tear sheet includes the name of a Fund.
(b) Is it recommended or mandatory to include certain disclaimers/warnings in the written marketing materials?	Yes, required if it is a Fund, please refer to section A of each of Appendix 1 and 2. If it is an Investment Management & Advisory Service, there is no recommended wording but the principles set out at 6.3(f) above will have to be complied with. There are no Private Offering Disclaimers.

If so, please specify which type of written marketing materials will require such a disclaimer/warning, e.g. the offering document, presentations, pitch books, emails? Please provide recommended wording in Section A of each of Appendix 1, Appendix 2 and Appendix 3 of this Memorandum, along with an indication of whether such wording is mandatory or recommended	
(c) Are there rules regarding the form/content of written marketing materials (including as to how performance data should be portrayed)? Please also consider whether these rules distinguish between the type of investor that such materials will be presented to?	Yes. Regarding the marketing of an Investment Management & Advisory Service, the Guidelines state that the contents of an advertisement shall be fair, clear, complete, concise and unambiguous, and shall be created bearing in mind the interest of the public in general and to the audience they are aimed at. See section 6.2(e) for more detail on the Guidelines. Any advertisement shall also contain information that is timely and consistent with any relevant prospectus, offer and/or contractual document. The advertisement shall convey an equitable message in respect of the returns, benefits and risks associated with the marketing materials. Benefits shall not be given undue prominence compared to risks. The tone of the advertisement shall not undermine the importance of the risks. Promoters must avoid extensive use of technical, legal terminology or complex language and the inclusion of excessive details in an advertisement. Promoters shall ensure, where applicable, that any reference to the involvement of the FSC in the advertisement shall not be construed or imply that the FSC has approved the advertisement or taken responsibility for the soundness of the financial products, or that it has recommended the financial products, or that statements and opinions expressed in the advertisement are true and accurate. Regarding the marketing of Funds, the Public Offer of Securities Requirements must be complied with unless the marketing is to Sophisticated Investors or where a Private Offering Exemption applies. A prospectus of a Fund shall provide full, true and plain disclosure of all material facts concerning the Securities to be offered and the person offering the Securities, without omitting anything that would be required to allow investors to make an informed assessment of:- (a) the assets and liabilities, financial position, profits and losses and prospects of the issuer of the Securities; and (b) the rights and liabilities attaching to the Securities. A prospectus shall contain: (a) the date of the prospectus, which shall be the date on which the prospectus is provisionally registered with the FSC;

	(b) a statement signed by all the directors of the issuer to the effect that they accept responsibility for the contents of the prospectus and that, to the best of their knowledge and belief, and after making reasonable inquiries, the prospectus complies with this Act, any regulations made under the Act or any “FSC Rules”; (c) such signatures as may be specified in “FSC Rules”; and (d) a statement to the effect that the FSC takes no responsibility for its contents. The prospectus of a Fund must contain details of the matters contained in the fourth or fifth schedule to the Regulations (as may be applicable), and depending on the types of Funds. For instance in the case of a Fully Regulated CIS, the prospectus must be in the form set out in the fourth schedule to the Regulations. The prospectus must set out details with regards to a minimum amount of subscriptions and at least 5% of the total amount must be raised within 6 months failing which the funds raised shall be returned to the investors. The prospectus must set out valuation procedures as well as procedures for valuing illiquid assets. The prospectus of an Expert Fund shall contain the definition of “Expert Investor” and shall state that the offering is only available to expert investors and shall contain a disclosure in a prescribe form to the effect that the FSC does not vouch for the financial soundness of the Fund or any of the contents of the prospectus and further that investors are not protected any investor compensation scheme in Mauritius. On the other hand, Professional CIS and Closed-Ended Funds which are not reporting issuers are exempted from many of the Regulations concerning the contents of a prospectus. Any OFI should also consider the Advertising Requirement, please see section 5(a) for more information.
(d) Does the regulator of your jurisdiction require the OFI to retain a record of the recipients of distributed marketing materials?	Under the Companies Act, a company is required to maintain company records including any copies of all written communication to shareholders for a period of at least 7 years. It is also a requirement under the Financial Services Act for a licensee to maintain its records for at least 7 years.
(e) Are there any other considerations that an OFI should bear in mind before disseminating written marketing materials in your jurisdiction?	Nothing specific.

8.2 Telephone	
(a) Can marketing/selling of a Fund or Investment Management & Advisory Services to investors in your jurisdiction be conducted through marketing by telephone?	No. Whilst the Soliciting of Sophisticated does not trigger restrictions, related active marketing/selling activities of a Fund/IMAS by any means will trigger the licensing and registration requirements described in sections 5 to 7 (i.e. the Investment Dealer/Adviser Licensing Requirement, the Advertisement Restriction where the OFI holds itself out as an Investment Dealer or Investment Adviser and in the case of Funds, the Public Offer of Securities Requirements (unless there is an applicable exemption)). If the Fund/OFI seeks to avoid local registration/licensing, the marketing and sale should occur (i) on a cross-border basis AND (ii) on a reverse-solicitation basis. Alternatively, the marketing and sale may occur through the use of a local licensed intermediary. Otherwise, in the case of a Fund, where the Fund has been recognised by the FSC as a Recognised Foreign CIS or Recognised Fully Regulated Scheme, and the OFI is the Fund manager of such scheme, marketing or selling of such Fund can be conducted through telephone. Any advertisement that constitutes an advertisement under the FSA must comply with the Advertising Restriction. Please see section 5(a) for information on the Advertisement Restriction and section 6.3(f) for more information on the Guidelines.
(b) Do specific additional requirements or restrictions apply in respect of cold calling of such investors?	Yes. The Guidelines provide that an OFI shall not make cold calls in relation to Funds/IMAS unless: (a) The recipient has an established existing client relationship and the relationship is such that he has consented to respond to the cold call; or (b) The marketing communication is related to a generally marketable, low volatility and low risk financial product.
(c) Is it recommended or required to make certain oral disclaimers/warnings during the course of the telephone call? If so, please describe the requirements that apply. Please also provide recommended wording in Section B of each of Appendix 1, Appendix 2 and Appendix 3 of this Memorandum.	It is recommended to use the same warnings/disclaimers when marketing/selling Funds as for written materials during the course of the telephone call. Where a Fund is licensed by the FSC (as a foreign CIS or fully regulated scheme as per section 6.2(d)(i)), the promoter must disclose full and accurate identity and all benefits that will be paid to him (whether by way of fees, commissions, dividends). There are no required/recommended oral disclaimers/warnings when marketing/selling IMAS. Please note the Guidelines set out in section 6.3(f).
(d) Are there any other considerations that an OFI should bear in mind before conducting telephone calls with prospective investors in your	Nothing specific.

jurisdiction? For example, is it mandatory that such telephone calls be recorded?	
8.3 Fly-In Meetings	
(a) Can marketing/selling of a Fund or Investment Management & Advisory Services to investors in your jurisdiction be conducted through a Fly-In Meeting? This would include a roadshow where specific information regarding the Fund and/or Investment Management & Advisory Service is presented/discussed.	Permitted in respect of Sophisticated Investors with respect to solicitation only. Please see section 5(a) for a discussion on the Advertising Restriction and the Investment Dealer/Adviser Requirement. Whilst Soliciting Sophisticated Investors will not trigger these restrictions, related active marketing/selling activities of a Fund/IMAS by Fly-In Meeting (including a roadshow) will trigger the licensing and registration requirements described in sections 5 - 7 above (i.e. the Investment Dealer/Adviser Licensing Requirement, the Advertisement Restriction where the OFI holds itself out as an Investment Dealer or Investment Adviser and in the case of Funds, the Public Offer of Securities Requirements (unless there is an applicable exemption)). If the Fund/OFI seeks to avoid local registration/licensing, the marketing and sale should occur: (i) on a cross-border basis AND (ii) on a reverse-solicitation basis. Alternatively, the marketing and sale may occur through the use of a local licensed intermediary. Any advertisement that constitutes an advertisement under the FSA must comply with the Advertising Restriction. Please see section 5(a) for information on the Advertisement Restriction and section 6.3(f) for more information on the Guidelines. Otherwise, in the case of a Fund, where the Fund has been recognised by the FSC as a Recognised Foreign CIS or Recognised Fully Regulated Scheme, and the OFI is the Fund manager of such scheme, marketing or selling of such Fund can be conducted through a Fly-In Meeting (including a roadshow).
(b) Are there any particular considerations that an OFI should bear in mind before conducting Fly-In Meetings with prospective investors? For example, is there a risk that frequent Fly-In Meetings may trigger some local licensing or regulatory requirements?	The approach shall not fall within the definition of “Solicitation” as referred to above or constitute an advertisement under the FSA. Please see 5(a) above.
8.4 Fly-Out Meetings	
(a) Do the licensing and regulatory requirements of your jurisdiction continue to apply to any marketing activities in connection with	No.

Funds and Investment Management & Advisory Services which take place at a Fly-Out Meeting?	
(b) If the answer to section (a) above is “ no ”, are there any courses of action which could result in the requirements of your jurisdiction having extra-territorial effect? For example, would it be possible for the OFI to induce the resident to leave your jurisdiction to attend a meeting in an offshore office of the OFI without triggering the application of the licensing and regulatory restrictions in your jurisdiction?	There may be courses of action which could result in the marketing activities to be construed as “Solicitation” as described at 5(a) above, for example, the OFI inviting Mauritian retail investors to attend offices of the OFI in respect of entering into Securities transactions.
8.5 Internet/Social Media	
(a) Please outline the requirements in your jurisdiction which apply to a webpage which is targeted towards investors located in your jurisdiction (e.g. by writing it in the language of your jurisdiction or by sponsoring links generated when internet users in your jurisdiction search for particular terms via a search engine).	Whilst Soliciting Sophisticated Investors will not trigger restrictions, Active marketing/selling a Fund/IMAS by targeted webpages will trigger the licensing and registration requirements described in sections 5 to 7 above (i.e. the Investment Dealer/Adviser Licensing Requirement, the Advertisement Restriction where the OFI holds itself out as an Investment Dealer or an Investment Adviser and in the case of Funds, the Public Offer of Securities Requirements (unless there is an applicable exemption)). If the Fund/OFI seeks to avoid local registration/licensing, the marketing and sale should occur: (i) on a cross-border basis; AND (ii) on a reverse-solicitation basis. Alternatively, the marketing and sale may occur through the use of a local licensed intermediary. Otherwise, in the case of a Fund, where the Fund has been recognised by the FSC as a Recognised Foreign CIS or Recognised Fully Regulated Scheme, and the OFI is the Fund manager of such scheme, marketing or selling of such Fund can be conducted through targeted webpages and in such case, a hard copy of the relevant webpages, where so required under any applicable laws, be submitted to the FSC in advance of it being displayed. Please also see section 8.2(c) above as to disclaimers that should be added to the webpages. Any advertisement that constitutes an advertisement under the FSA must comply with the Advertising Restriction. Please see section 5(a) for information on the Advertisement Restriction and section 6.3(f) for more information on the Guidelines. Pursuant to the Guidelines, the principles and standards as set out below must be followed: (i) Promoters must take all reasonable steps to ensure that copy of any electronic advertisements or constitutive documents of the financial products are identical to the most up-to-date paper versions, submitted to the FSC, where appropriate;

	(ii) There shall be a prominent statement on the relevant web pages, which is capable of being seen or read with reasonable ease by the consumer accessing the electronic copies of such advertisements or constitutive documents, to the effect that printed copies of the same are also available, as well as where and how they can be obtained; and (iii) Any advertisements or other documents on the relevant web pages shall remain available for as long as it is necessary for the consumers of the financial products to have a reasonable opportunity to read or access them. Consumers must also be given the opportunity to retain the information through printing or downloading.
(b) Does your jurisdiction impose requirements/restrictions in respect of webpages which have not been targeted towards investors in your jurisdiction but which are accessible from your jurisdiction?	No.
(c) If the answer to section (b) is “ yes ”, what steps could an OFI take to reduce the regulatory risk in your jurisdiction as regarding marketing materials posted on non-targeted webpages? For example, by requiring an investor or potential investor to verify suitability through acceptance of a disclaimer, provide confirmation that he is not located in your jurisdiction, by making the pages password protected or through use of a secure portal to regulate information available to users?	There are no specific disclosures but given the broad nature of the Guidelines, it may be preferable to include disclosures. Please refer to section A of each Appendix 1 and 2 below. However, it should be noted that the guidelines for advertising and marketing of financial products dated October 2014 as issued by the FSC clearly states: “<i>Under no circumstances, a Promoter may disclaim its liabilities in respect of the accuracy of the advertisement</i>”.
(d) Please outline any requirements in your jurisdiction which apply to marketing activities which take place via social media (e.g. blogs, X Corp. (formerly known as Twitter), social networks (Facebook, LinkedIn), forums or photo/video-sharing platforms (e.g. YouTube, Instagram)) and which are targeted towards investors located in your jurisdiction e.g. (i) posts are written in the language of your jurisdiction or have direct relevance to investors in your jurisdiction or (ii) adverts are sponsored to appear on the user pages of investors based in your jurisdiction? Please can you consider if activities on social media would be treated differently if they were conducted by means of a direct message to an investor in your jurisdiction as	The requirements set out at 8.5(a) above will also apply to social media. Assuming that a direct message is with respect to the marketing activities, a direct message to an investor will trigger the licensing and registration requirements described in sections 5 to 7 above, including the Investment Dealer/Adviser Licensing Requirement.

	opposed to a post that can be viewed by many users of the platform including an investor in your jurisdiction.	
(e)	Does your jurisdiction impose requirements/restrictions in respect of social media content which has not been targeted towards investors in your jurisdiction but is nevertheless accessible from your jurisdiction?	No.
(f)	Please set out any practical advice which OFIs should follow in order to reduce the regulatory risk in your jurisdiction regarding marketing activities conducted via social media. For example, is it recommended that all posts contain either the full recommended disclaimer or is it ok to include a link to such disclaimer instead? On X Corp. (formerly known as Twitter), is the use of images a possible solution to the problem of character limitation e.g. by posting a disclaimer as an attachment to a tweet?	There are no specific restrictions but given the broad nature of the Guidelines, a more conservative approach is preferred. However, it should be noted that the guidelines for advertising and marketing of financial products dated October 2014 as issued by the FSC clearly states: <i>“Under no circumstances, a Promoter may disclaim its liabilities in respect of the accuracy of the advertisement”</i> .
(g)	Are there any legends, risk factors, disclosures and disclaimers which are required or recommended by local counsel for inclusion in webpages and/or social media which contain marketing materials relating to Funds and/or Investment Management & Advisory Services and which may be accessed by investors located in your jurisdiction?	There are no specific disclosures but given the broad nature of the Guidelines, it may be preferable to include disclosures. See Appendix 4.B. below.
(h)	Please outline (or cross-refer) to any licensing/regulatory requirements in your jurisdiction which apply to virtual events/meetings (e.g. online web/video conferences/channels) involving marketing/selling activities relating to Funds and/or Investment Management & Advisory Services conducted with investors in your jurisdiction (e.g. virtual roadshows, presentations or promotional events).	An OFI’s active marketing activities through virtual events/meetings (such as online web/video conferences/channels, virtual roadshows, presentations or promotional events) will trigger the licensing and registration requirements described in sections 5 to 7 and 6.3 above (i.e. the Investment Dealer/Adviser Licensing Requirement, the Advertisement Restriction where the OFI holds itself out as an Investment Dealer or an Investment Adviser and in the case of Funds, the Public Offer of Securities Requirements (unless there is an applicable exemption)).
(i)	Is it recommended or mandatory to include certain disclaimers/warnings in the materials presented/disseminated by means of virtual events/meetings relating to Funds and/or Investment Management & Advisory Services?	There are no specific disclosures but given the broad nature of the Guidelines, it may be preferable to include disclosures. Please also refer to section A of each Appendix 1 and 2 below.

8.6 General Marketing	
(a) Please set out or cross-refer to any licensing and regulatory restrictions which may apply to general marketing by an OFI in your jurisdiction as follows: (i) general brand marketing that comprises the use of the OFI's corporate name, logo, slogan or design scheme; (ii) providing general information about the OFI (e.g. history, business divisions, key persons); (iii) publishing articles/giving interviews e.g. thought leadership pieces or macroeconomic analysis/market outlook; and (iv) general marketing materials which refer to awards/customer testimonials. Does the analysis depend on the type of investor that is targeted e.g. Professional Investor, Retail Investor etc.or whether the activity takes place remotely or at a Fly-In Meeting?	Any advertisement that constitutes an advertisement under the FSA must comply with the Advertising Restriction where the OFI holds itself out as an Investment Dealer or an Investment Adviser. Please see section 5(a) for information on the Advertisement Restriction and section 6.3(f) for more information on the Guidelines. Whether or not general marketing would involve Solicitation or an advertisement depends on the wording and the context. As far as (i) is concerned, it is more likely that it will be considered as Solicitation. Whereas Solicitation is permitted in relation to Sophisticated Investors, where the OFI holds itself out as an Investment Dealer or an Investment Adviser this will trigger the Investment Dealer/Adviser Licensing Requirement and, where the OFI holds itself out as an Investment Dealer or an Investment Adviser, the Advertisement Restriction. As far as (ii) is concerned, it is more likely that the provision of general information about the OFI (e.g. history, business divisions, key persons) will be considered as Solicitation. Whereas Solicitation is permitted in relation to Sophisticated Investors, where the OFI holds itself out as an Investment Dealer or an Investment Adviser this will trigger the Investment Dealer/Adviser Licensing Requirement and, where the OFI holds itself out as an Investment Dealer or an Investment Adviser, the Advertisement Restriction. As far as (iii) is concerned, it is less likely that publishing articles or giving interviews (e.g. thought leadership pieces or macroeconomic analysis/market outlook) will be considered as Solicitation or an advertisement where the content is informational in nature and provides general insights on the state of investments, financial markets, the economy or industry trends, rather than promoting specific investment opportunities, financial products or investment services. It will be applicable to remote or fly-in activities. Fly-In Meetings which do not involve any financial services business being carried out in Mauritius can be conducted on a private basis without triggering the licensing and registration requirements so long as their frequency and length of visit are as low/short as possible. The visit should not constitute an act of distributing of Securities on behalf of the issuer and should not solicit another person to enter into Securities transactions (i.e. no financial services

	business will be carried out within Mauritius). Meeting discussions should not involve execution of binding contracts whilst onshore. As far as (iv) is concerned, it is more likely that it will be considered as Solicitation. It may be considered as an advertisement falling under the category of “commercial and promotional materials communicated through any medium and in any form”.
(b) Please set out or cross-refer to any licensing and regulatory restrictions which may apply to general marketing which involves general awareness-raising of product lines or service lines including discussion of general strategies (but without reference to a specific Fund or Investment Management & Advisory Service). Does the analysis depend on the type of investor that is targeted e.g. Professional Investor, Retail Investor etc.or whether the activity takes place remotely or at a Fly-In Meeting?	General marketing which involves general awareness-raising of product lines or service lines including discussion of general strategies (but without reference to a specific Fund or IMAS) is permitted to Sophisticated Investors provided the OFI does not hold itself out as an Investment Dealer or an Investment Adviser. In respect of other investors, permitted provided that it does not fall within the definition of “Solicitation” or is not considered to be an advertisement which must comply with the Advertisement Restriction. It depends on the wording and the context. Whereas Solicitation is permitted in respect of Sophisticated Investors, restrictions are triggered where the OFI holds itself out as an Investment Dealer or an Investment Adviser. This type of marketing is more likely to constitute Solicitation or an advertisement than that described in (a). It is applicable to any remote or fly-in activities. Fly-In Meetings which do not involve any financial services business being carried out in Mauritius can be conducted on a private basis without triggering the licensing and registration requirements so long as their frequency and length of visit are as low/short as possible.
(c) Please set out or cross-refer to any licensing and regulatory restrictions which may apply to general marketing which involves discussions which refer to particular characteristics of a Fund or Investment Management & Advisory Service (e.g. investment strategies or ideas) without referring to the name of the relevant Fund or Investment Management & Advisory Service? An example of this type of marketing would include a tear sheet which while it may not include the name of the relevant Fund or Investment Management & Advisory Service, may include a brief description of strategy, terms, summary statistics (e.g. relating to AUM, performance, risk) and/or a list of key service providers. Does the analysis depend on the type of investor that is targeted e.g. Professional Investor, Retail Investor etc.or whether the activity takes place remotely or at a Fly-In Meeting?	Any advertisement that constitutes an advertisement under the FSA must comply with the Advertising Restriction. Please see section 5(a) for information on the Advertisement Restriction and section 6.3(f) for more information on the Guidelines. These discussions may be construed as “Solicitation” or “advertisement” as further described at 5(a) above, and may be caught by the Investment Dealer/Adviser Licensing Requirement and the Advertisement Restriction. This type of marketing is more likely to constitute Solicitation or an advertisement than that described in (b). Whereas Soliciting Sophisticated Investors will not trigger these requirements, where the OFI holds itself out as an Investment Dealer or an Investment Adviser these requirements apply. It is applicable to remote or fly-in activities. Fly-In Meetings which do not involve any financial services business being carried out in Mauritius can be conducted on a private basis without triggering the licensing and registration requirements so long as their frequency and length of visit are as low/short as possible.

(d) Are there any rules regarding the form/content of written marketing materials which contain the type of information referred to in 8.6(c) above e.g. tear sheets/snapshots of marketing presentations that do not refer to the name of the Fund?	Yes. This will be subject to the requirements of the Guidelines. The fact that the written marketing materials (e.g. tear sheets or snapshots of marketing presentations) do not refer to the name of the Fund does not, in itself, exclude the application of the Guidelines. For instance, there are rules applicable in relation to words and layouts used, risk and warning disclosures and performance information, amongst others. The assessment will depend on the content and whether the materials constitute an advertisement or promotional communication.
(e) Are there any licensing or regulatory restrictions which may apply when an employee of an OFI (i) attends a finance-related event in your jurisdiction; or (ii) is a speaker at a finance-related event in your jurisdiction and discusses general trends/themes rather than a specific Fund/IMAS?	No, provided that the employee's attendance at, or participation as a speaker in, a finance-related event is limited to discussions of general market trends, economic themes or industry insights and does not involve the promotion of, or reference to, any specific Fund or services of the OFI.
(f) Are there any restrictions in relation to solely socialising with prospective investors in your jurisdiction?	No, provided that the social interaction remains purely social in nature and does not involve the promotion of, or discussion relating to, any specific Fund or services of the OFI.
(g) Are there any restrictions in relation to solely distributing business cards (paper or electronic)? Does the analysis depend on the type of investor that is targeted e.g. Professional Investor, Retail Investor etc.or whether the activity takes place remotely or at a Fly-In Meeting?	No, handing over business cards is permitted. The approach shall not fall within the definition of "Solicitation" as referred to above or constitute an advertisement under the FSA (which must comply with the Advertisement Restriction where the OFI holds itself out as an Investment Dealer or an Investment Adviser). It depends on the wording and the context. This response is applicable to all investors and remote or fly-in activities.
(h) Is it recommended or mandatory to include certain disclaimers/warnings in any general marketing materials presented/disseminated?	There are no specific disclosures but given the broad nature of the Guidelines, it may be preferable to include disclosures. Please refer to section A of each Appendix 1 and 2 below.
8.7 Pre-Marketing	
(a) Is it permitted to conduct any "pre-marketing" activities in respect of a Fund in your jurisdiction to assess investor appetite either: (A) before committing to any registration/notification/approval/licensing requirements; or	The term "pre-marketing" has not been defined in the Securities Act, the FSA, the Advertisement Restriction or the Guidelines and there are no specific rules regulating "pre-marketing" activities in our jurisdiction. The restrictions relating to active marketing/selling set out above in sections 5 to 7 above apply. To the extent the 'pre-marketing' activities involve: (i) the OFI holding itself out as an investment adviser or an investment dealer or; (ii) in relation to investors other than Sophisticated Investors

(B) during the relevant registration/notification/ approval/licensing process? If so, please could you provide a definition of what would amount to permitted “pre-marketing” of a Fund.	fall within the definition of “Solicitation” as mentioned at 5(a) above, it will trigger the various requirements as described in 5(a) above and 7.1(a).
(b) Where “pre-marketing” of a Fund is permitted in your jurisdiction, please could you outline the types of marketing activities which would fall within the scope of such permitted “pre-marketing”, distinguishing if relevant between:	
(c) (i) the types of materials that can be circulated (e.g. presentations, offering documents, subscription documents);	Please see section 8.7(a) above.
(ii) the status of the Fund (e.g. whether established or still under formation);	Please see section 8.7(a) above.
(iii) whether the documents are in draft or final form;	Please see section 8.7(a) above.
(iv) any specific “pre-marketing” activities to avoid on the basis that these will trigger the relevant requirements; and	Please see section 8.7(a) above.
(v) any other relevant considerations in your jurisdiction (e.g. number or type of investor to whom the “pre-marketing” is done).	Please see section 8.7(a) above.
(c) Are there any registration/notification/approval/licensing requirements which apply in respect of the OFI conducting pre-marketing of a Fund in your jurisdiction?	Please see section 8.7(a) above..
8.8 Investment Advice	
(a) Is it permitted for an OFI to provide Investment Advice in relation to a Fund or Investment Management & Advisory Services to an investor in your jurisdiction and, if so, on what basis? In preparing your answer, please ensure that your analysis covers the following (or if these matters are not relevant to your jurisdiction, please explicitly state that in your response):	Please refer to 7.3(a) above in relation to investment advising activities which requires the OFI to comply with the Investment Dealer/Adviser Licensing Requirement.

(i) available exemptions which permit the provision of Investment Advice. If an exemption is available, please set out the criteria which must be satisfied in order to utilise it. Please comment on both formal “black-letter law” exemptions and accepted practice.	No, there are no exemptions to the Investment Dealer/Adviser Licensing Requirement, however the requirement can be avoided by the use of a locally licensed intermediary; or where the Fund is a Recognised Foreign CIS or a Recognised Fully Regulated Scheme, and the OFI is the manager of the scheme.
(ii) the relevant criteria for determining whether an investor is in your jurisdiction for the purposes of determining whether the provision of Investment Advice is permitted (e.g. investor is incorporated, domiciled, has employees in your jurisdiction).	Please see 7.3(a)(ii) above.
(b) any sensitivities depending on whether the investor is a potential or an existing client or whether such investor solicited the Investment Advice or not.	Please see 5(a)(iii) above.
(c) Does the regulatory regime in your jurisdiction applicable to the marketing/provision of Investment Advice extend to advice in relation to portfolio construction and/or manager selection? If not, please could you briefly outline how the marketing/provision of advice in relation to portfolio construction/manager selection is regulated in your jurisdiction, if at all.	Please refer to 7.3(a) above in relation to investment advising activities which requires the OFI to comply with the Investment Dealer/Adviser Licensing Requirement. Section 31 (1) of the Securities Act is broadly defined the act of “advising”, “guiding” or “recommending” other persons to enter into securities transactions. The act of manager selection and/or portfolio construction can be considered as advising/guiding/recommending someone to enter into a securities transaction.
8.9 Arranging	
(a) Is it permitted for an OFI to provide Arranging services in relation to a Fund or Investment Management & Advisory Services with an investor in your jurisdiction and, if so, on what basis? In preparing your answer, please ensure that your analysis covers the following (or if these matters are not relevant to your jurisdiction, please explicitly state that in your response):	Yes. Please see 7.1(c) above in relation to investment dealing activities which requires the OFI to comply with the Investment Dealer/Adviser Licensing Requirement.
(i) available exemptions which permit the provision of Arranging. If an exemption is available, please set out the criteria which must be satisfied in order to utilise it. Please comment on both formal “black-letter law” exemptions and accepted practice.	No, there are no exemptions to the Investment Dealer/Adviser Licensing Requirement however the requirement can be avoided by the use of a locally licensed intermediary; or where the Fund is a Recognised Foreign CIS or a Recognised Fully Regulated Scheme, and the OFI is the manager of the scheme.

(ii) the relevant criteria for determining whether an investor is in your jurisdiction for the purposes of determining whether the provision of Arranging is permitted (e.g. investor is incorporated, domiciled, has employees in your jurisdiction).	Please see 7.3(a)(ii) above.
(b) any sensitivities depending on whether the investor is a potential or an existing client or whether such investor solicited the Arranging or not.	Please see 5(a)(iii) above.
8.10 Subscription Documentation and Relationship Management	
Sections (a) to (d) below look at scenarios relating to the provision by an OFI to an investor of either: • Fund subscription documentation; or • contracts relating to the provision of Investment Management & Advisory Service(s). In relation to sections (a) to (d) please can you briefly describe any relevant restrictions or considerations that apply or, if relevant, please cross-refer to other sections of the Memorandum. Are the below scenarios permitted?	
(a) The OFI provides/sends: • Fund subscription documentation; or • a contract relating to the provision of Investment Management & Advisory Service(s) to a potential investor:	
(i) where the OFI and the investor are both in your jurisdiction (e.g. at a Fly-In Meeting); or	Active marketing/selling a Fund/IMAS will trigger the licensing and registration requirements described in sections 5 to 7 above (i.e. the Investment Dealer/Adviser Licensing Requirement, the Advertisement Restriction and in the case of Funds, the Public Offer of Securities Requirements). Please see sections 5 to 7 above for more information on the restrictions and the relevant exemptions/exceptions.

(ii) where the OFI is outside your jurisdiction but the investor is in your jurisdiction (e.g. the OFI sends the documentation via email/post).	Active marketing/selling a Fund/IMAS will trigger the licensing and registration requirements described in sections 5 to 7 above (i.e. the Investment Dealer/Adviser Licensing Requirement, the Advertisement Restriction and in the case of Funds, the Public Offer of Securities Requirements). Please see sections 5 to 7 above for more information on the restrictions and the relevant exemptions/exceptions.
(b) The: • Fund subscription documentation; or • a contract relating to the provision of Investment Management & Advisory Service(s) is signed :	
(i) where the relevant signatories for both parties are in your jurisdiction (e.g. at a Fly-In Meeting); or	If the OFI or the investor are not based in Mauritius but the choice for execution of the documents was made in Mauritius as a matter of convenience, it will not trigger any licensing requirement.
(ii) where the relevant signatories for the Fund or provider of the Investment Management & Advisory Service are outside your jurisdiction but the investor is in your jurisdiction (e.g. the signed documents are transmitted between the parties via email/fax/post/courier).	Active marketing/selling a Fund/IMAS will trigger the licensing and registration requirements described in sections 5 to 7 above (i.e. the Investment Dealer/Adviser Licensing Requirement, the Advertisement Restriction and in the case of Funds, the Public Offer of Securities Requirements). Please see sections 5 to 7 above for more information on the restrictions and the relevant exemptions/exceptions.
(c) Will the location where documentation is signed by either party as described in either section (b)(i) or (ii) above affect whether the contract is deemed “booked” in your jurisdiction?	The location of the investor or the OFI is key. If either are located in Mauritius, any active marketing/selling a Fund/IMAS by any means will trigger the licensing and registration requirements described in sections 5 to 7 above (i.e. the Investment Dealer/Adviser Licensing Requirement, the Advertisement Restriction and in the case of Funds, the Public Offer of Securities Requirements). Please see sections 5 to 7 above for more information on the restrictions and the relevant exemptions/exceptions.
(d) This question 8.10(d) focuses on relationship management and/or investor relations activities , which are conducted between an OFI and an investor once such investor has invested in a Fund and/or engaged the OFI to provide an Investment Management & Advisory Service. Such activities would, for example, involve the OFI: • updating the investor on its existing investments; and/or	The OFI would be permitted to conduct the relationship management/investor relations activities provided that this carried out without falling foul of the relevant restrictions described in sections 5 to 7 above.

• providing account statements, transaction reports or periodic reports to the investor. Please confirm whether an OFI would be permitted to conduct such relationship management/investor relations activities: • on a cross-border basis; or • at a Fly-In Meeting in your jurisdiction. Alternatively, please describe any relevant restrictions or considerations that apply, if relevant cross-referring to other sections of the Memorandum. For the purposes of this question, please presume that the marketing/selling activities that underpin the relationship between the OFI and the investor were conducted pursuant to permitted means in your jurisdiction and/or were conducted in another jurisdiction before the investor re-located to your jurisdiction. Please also presume that the relationship management/investor relations activities will not involve any further marketing/selling of other funds/services outside the scope of the existing relationship.	
8.11 Requests for Proposals (RFPs)	
This question 8.11 looks at the scenario where an OFI is asked to respond to a request for proposal, request for information or similar process (an RFP) from an investor in your jurisdiction.	
(a) Please could you outline whether there are any registration/notification/approval/licensing requirements which apply where an OFI responds to an RFP in respect of a Fund from an investor in your jurisdiction? If appropriate, please cross-refer to other sections of the Memorandum in your response.	To the extent that the RFP constitutes an unsolicited approach from an investor in Mauritius, an OFI responding to the RFP is permitted (without any registration/approval/licensing requirements) provided that: (i) the RFP does not fall within the definition of “Solicitation” on the part of the OFI as referred to above (and as such will not trigger the Investment Dealer/Adviser Licensing Requirement); (ii) it is not deemed that there has been a public offer of Securities (and as such the Public Offer of Securities Requirements will not apply);

	(iii) the OFI does not publish an advertisement under the FSA (and as such not contravene the Advertisement Restriction or trigger the Investment Dealer/Adviser Licensing Requirement); and (iv) OFI conducts its activities on a cross-border basis only. There is no legal framework relating to reverse enquiry under our laws. In practice, a reverse-enquiry/reverse solicitation is understood to mean where an investor contacts an offshore financial institution on his own volition for any information relating to an investment service or securities transaction. An RFP is likely to be considered as a reverse-enquiry/reverse solicitation. An unsolicited approach should be one that does not fall within the definition of “Solicitation” as referred to at 5(a) above. Any Solicitation will trigger the Investment Dealer/Adviser Licensing Requirement.
(b) Could the activity of responding to an RFP regarding a Fund fall within the scope of permitted "reverse-enquiry"/"reverse-solicitation" in your jurisdiction?	Please see 8.11(a) above.
(c) Please could you outline whether there are any registration/notification/approval/licensing requirements which apply where an OFI responds to an RFP in respect of an Investment Management & Advisory Service from an investor in your jurisdiction? If appropriate, please cross-refer to other sections of the Memorandum in your response.	Please see 8.11(a) and 7.3(a)(ii) above.
(d) Could the activity of responding to an RFP regarding an Investment Management & Advisory Service fall within the scope of permitted "reverse-enquiry"/"reverse-solicitation" in your jurisdiction?	Please see 8.11(a) and 7.3(a)(ii) above.
8.12 Relocation of Investor	
(a) What restrictions, if any, might apply where an OFI has an investor that invested in a Fund and/or that received the OFI's Investment Management & Advisory Services while the investor was in another jurisdiction but that investor has now moved into your jurisdiction?	To the extent that the pre-existing relationship is evidence that the approach of the investor has not been solicited, an OFI providing further services to an investor who has moved jurisdiction is permitted (without any registration/approval/licensing requirements) provided that: (i) the approach does not fall within the definition of “Solicitation” on the part of the OFI as referred to above (and as such will not trigger the Investment Dealer/Adviser Licensing Requirement);

	(ii) it is not deemed that there has been a public offer of Securities (and as such the Public Offer of Securities Requirements will not apply); (iii) the OFI does not publish an advertisement under the FSA (and as such not contravene the Advertisement Restriction or trigger the Investment Dealer/Adviser Licensing Requirement); and (iv) OFI conducts its activities on a cross-border basis only. There is no legal framework relating to reverse enquiry under our laws. In practice, a reverse-enquiry/reverse solicitation is understood to mean where an investor contacts an offshore financial institution on his own volition for any information relating to an investment service or securities transaction. A pre-existing relationship is usually evidence that the approach of the investor has not been solicited, and is likely to be considered as a reverse-enquiry/reverse solicitation.
(b) Can the OFI continue to service that investor in respect of its original investment/relationship?	Yes subject to 8.12 (a) above.
(c) If the OFI wished to conduct further marketing activities in respect of that Fund or Investment Management & Advisory Service with that investor, what considerations would apply? If appropriate, please cross-refer to other sections of the Memorandum in your response.	Please see 8.12 (a) above.
(d) Does the analysis depend on the type of investor that is targeted e.g. Professional Investor, Retail Investor etc?	No.
8.13 Activities with Distributors/Intermediaries	
The below questions (a) and (b) explore fact patterns where a distributor/intermediary is required/necessary. In section 6.2(d)(iv)(A) we ask you whether a distributor/intermediary is necessary in order to market/sell a Fund to the public. In section 7.1(d)(i)(A) we ask you whether a distributor/intermediary is necessary in order to market/sell a Fund pursuant to the potential private placement routes explored in section 7.1. Where your answers indicate that a distributor/intermediary is necessary in either (or both) of those scenarios, please can you address the scenarios set out below. In answering the below questions, please assume that the relevant distributor/intermediary in your jurisdiction has the necessary licence/authorisation to undertake the relevant distribution activities and that appropriate contractual provisions will be entered into with the distributor/intermediary governing the relationship. Please note that this question focuses on how activities may be undertaken with the distributor/intermediary. Where appropriate you may wish to cross-refer to requirements discussed elsewhere in this Memorandum regarding the requirements that apply to the Funds that will be marketed/sold (i.e. whether they need to be approved/registered in the jurisdiction and/or whether they need to fall within a particular route/exemption), but such requirements are not the focus of this question.	

(a) Please flag any practical considerations which an OFI may wish to consider in terms of establishing a relationship with such distributor/intermediary e.g. whether there are requirements to consider as to how contact between the OFI and the distributor/intermediary based in your jurisdiction takes place and regarding the provision of documents/information about the Fund to the distributor/intermediary.	Public: An OFI should ensure that the distributor/intermediary holds and maintains the appropriate licences, authorisations and regulatory permissions to undertake the relevant distribution activities in the jurisdiction. The OFI may also conduct appropriate due diligence and establish ongoing monitoring procedures to verify continued compliance. The relationship should be established on a properly structured and documented basis, including through a written distribution agreement setting out the scope of activities, allocation of responsibilities and compliance obligations. The OFI should also establish clear communication, correspondence and notification procedures, including designated points of contact and arrangements for maintaining records of material communications. There are no specific restrictions on how contact between the OFI and the distributor/intermediary takes place, provided such interaction does not result in the OFI itself conducting regulated activities. Any Fund-related documents or information shared with the intermediary should be accurate, up to date and consistent with the applicable offering documentation and regulatory requirements. To the extent applicable, such documentation may include the prospectus, subscription documentation, constitutive documents of the Fund, investor disclosures and risk disclosures, and any supplements. Marketing materials should remain consistent with the approved offering documentation and should not contain misleading or inconsistent statements. The intermediary may also be required to notify the OFI of material matters, including changes to licensing status, regulatory issues, compliance breaches or events affecting its ability to perform distribution activities. Private Placement: The same considerations apply. In addition, the OFI should ensure that the intermediary's activities remain within the scope of the applicable private placement exemption and do not amount to public offering or general solicitation. Fund information should only be provided and used for the permitted distribution purpose and appropriate controls should be implemented to prevent unauthorised onward dissemination. Any Fund-related documents or information shared with the intermediary should be accurate, up to date and consistent with the applicable offering documentation and regulatory requirements. To the extent applicable, such documentation may include the offering memorandum or private placement memorandum,
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	subscription documentation, constitutive documents of the Fund, investor disclosures and risk disclosures, and any supplements. Marketing materials should remain consistent with the approved offering documentation and should not contain misleading or inconsistent statements.
(b) Please flag any practical considerations which an OFI may wish to consider in terms of interactions with potential investors once the distributor/intermediary has been appointed . Are there any practical considerations on how activities should be structured with the distributor/intermediary and/or with any potential investors.	Please see 8.12 (a) above.
The below questions (c) and (d) explore fact patterns where a distributor/intermediary is permitted. In section 6.2(d)(iv)(B) we ask you whether a distributor/intermediary is permitted in order to market/sell a Fund to the public. In section 7.1(d)(i)(B) we ask you whether a distributor/intermediary is permitted in order to market/sell a Fund pursuant to the potential private placement routes explored in section 7.1. Where your answers indicate that a distributor/intermediary is permitted in either (or both) of those scenarios, please can you address the scenarios set out below. It may be that an OFI wishes to work with a distributor/intermediary as a means of addressing a regulatory restriction in your jurisdiction (e.g. a firm licensing requirement) that the OFI would otherwise be caught by in connection with the marketing/selling activities in connection with a Fund. Alternatively it may be that an OFI is looking to appoint the distributor for commercial/relationship reasons. In answering the below questions, please assume that the relevant distributor/intermediary in your jurisdiction has the necessary licence/authorisation to undertake the relevant distribution activities and that appropriate contractual provisions will be entered into with the distributor/intermediary governing the relationship. Please note that this question focuses on how activities may be undertaken with the distributor/intermediary. Where appropriate you may wish to cross-refer to requirements discussed elsewhere in this Memorandum regarding the requirements that apply to the Funds that will be marketed/sold (i.e. whether they need to be approved/registered in the jurisdiction and/or whether they need to fall within a particular route/exemption), but such requirements are not the focus of this question.	
(c) Please flag any practical considerations which an OFI may wish to consider in terms of establishing a relationship with such a distributor/intermediary e.g. whether there are requirements to consider as to how contact between the OFI and the distributor/intermediary based in your jurisdiction takes place and regarding the provision of documents/information about the Fund to the distributor/intermediary.	Public: An OFI should ensure that the distributor/intermediary holds and maintains the appropriate licences, authorisations and regulatory permissions to undertake the relevant distribution activities in the jurisdiction. The OFI may also conduct appropriate due diligence and establish ongoing monitoring procedures to verify continued compliance. The relationship should be established on a properly structured and documented basis, including through a written distribution agreement setting out the scope of activities, allocation of responsibilities and compliance obligations. The OFI should also establish clear communication,

	correspondence and notification procedures, including designated points of contact and arrangements for maintaining records of material communications. There are no specific restrictions on how contact between the OFI and the distributor/intermediary takes place, provided such interaction does not result in the OFI itself conducting regulated activities. Any Fund-related documents or information shared with the intermediary should be accurate, up to date and consistent with the applicable offering documentation and regulatory requirements. Such documentation may include the prospectus, subscription documentation, constitutive documents of the Fund, investor disclosures and risk disclosures, and any supplements. Marketing materials should remain consistent with the approved offering documentation and should not contain misleading or inconsistent statements. The intermediary may also be required to notify the OFI of material matters, including changes to licensing status, regulatory issues, compliance breaches or events affecting its ability to perform distribution activities. Private Placement: The same considerations apply. In addition, the OFI should ensure that the intermediary's activities remain within the scope of the applicable private placement exemption and do not amount to public offering or general solicitation. Fund information should only be provided and used for the permitted distribution purpose and appropriate controls should be implemented to prevent unauthorised onward dissemination. The OFI should also ensure that communications and engagement with prospective investors remain appropriately targeted and consistent with the conditions of the applicable private placement route. Any Fund-related documents or information shared with the intermediary should be accurate, up to date and consistent with the applicable offering documentation and regulatory requirements. To the extent applicable, such documentation may include the offering memorandum or private placement memorandum, subscription documentation, constitutive documents of the Fund, investor disclosures and risk disclosures, and any supplements. Marketing materials should remain consistent with the approved offering documentation and should not contain misleading or inconsistent statements.
(d) This question focuses on interactions with potential investors once the distributor/intermediary has been appointed. Are there any practical considerations on how activities should be structured with the distributor/intermediary and/or with any potential investors.	Please see 8.12 (a) above.

9. [SECTION INTENTIONALLY LEFT BLANK]

10. LICENCE

Questions	Answers
If a licence is required in order to be able to engage in marketing/selling a Fund or Investment Management & Advisory Services, please explain in outline only: (a) The type of licence that would be required;	Funds In relation to other investors, an OFI can only market/sell interests in a Fund if it is licensed as an investment dealer in Mauritius (i.e. complied with the Investment Dealer/Adviser Licensing Requirement) unless a locally licensed intermediary is used or where the Fund is a Recognised Foreign CIS or a Recognised Fully Regulated Scheme and the OFI has been authorised to act as the manager of that scheme in its home jurisdiction. In this scenario the OFI can conduct marketing/selling activities itself without using a locally licensed intermediary. For information on the Investment Dealer/Adviser licence, please see section 7.2(b) and 7.3(b) above. Please see section 6.2(e) for more information on the process for a Fund to become a Recognised Foreign CIS or a Recognised Fully Regulated Scheme. IMAS An OFI can only market/sell IMAS if it is licensed as an Investment Dealer/Adviser unless a locally licensed intermediary is used. Investment Advice and Portfolio Management will require an investment adviser licence. Arranging and Execution of Orders on Behalf of Clients will require an investment dealer's licence. Please see section 7.1(c) above for more information on the investment dealer's licence and section 7.3(b) above regarding the Investment Adviser licence.
(b) What, if any, presence in your jurisdiction the OFI would need to establish in order to obtain the relevant licence, including: (c) (i) any specific legal form requirements (e.g. a local company or a branch);	In order to be licensed as an investment dealer or investment adviser, the OFI is required to incorporate a subsidiary such as a local company or branch or such other legal entity as approved by the FSC in Mauritius. In order to be licensed as a collective investment scheme or closed-ended fund, the OFI may be structured as a company, a protected cell company, a trust, a limited partnership or any other legal entity approved by the FSC

(d) (ii) any requirement to list/register the local presence in a commercial registry or other local register;	The entity will have to be registered with the FSC and the Registrar of Companies/Partnerships.
(e) (iii) any limitations regarding ownership of the local presence;	No.
(f) (iv) any substance requirements that apply to the local presence;	To the extent that the OFI is setting up as a global scheme, a closed-ended fund with a global business licence or an investment dealer or adviser with a global business licence, it must ensure that: (a) at all times their core income generating activities are being carried out in or from Mauritius; (b) is managed and controlled from Mauritius; and (c) is administered by a licensed management company According to the Statement of Practice SP 22/21 issued by the Mauritius Revenue Authority, such a scheme must: (i) ensure that at all times their core income generating activities are being carried out in or from Mauritius; (ii) employing, either directly or indirectly, a reasonable number of suitably qualified persons to carry out the core income generating activities; and (iii) having a minimum level of expenditure, which is proportionate to their level of activities. The licensed entity must have at least two directors resident in Mauritius, maintain its principal bank account in Mauritius, have all its accounting records in Mauritius and be audited and provides for directors' meetings to include the resident directors in Mauritius. In case of an investment adviser/dealer with no global business licence, there is a requirement to have full-time officers in the investment advisory/deal team together with a representative of the investment dealer/adviser. The roles may be cumulated. With respect to a global scheme/ closed-ended fund with a global business licence or an investment adviser/dealer with a global business licence, outsourcing of the core income generating activities may be made but within Mauritius. As far as an investment adviser/dealer with a global business licence is concerned, at least one person must be employed, either directly or indirectly, to carry out the core income generating activities.
(v) any requirements regarding locally employed staff (e.g. minimum number of directors and/or employees, any qualification or notification requirements that apply in respect of such staff); and	Please see 10 (f) (iv) above

(vi) indication of time period and approximate costs to set up/establish local presence;	Usually around 1 to 3 months.
(g) An outline of the procedure involved in obtaining such licence including an indication of the time it would ordinarily take to obtain such licence; and	Please see 7.1(c) and 7.3(a)(i) above for details relating to the investment adviser and investment dealer licences.
(h) Please specify the approximate costs associated with obtaining such licence (please include initial application cost together with any ongoing fees).	Please refer to the attached link.

11. PENALTIES/SANCTIONS

Questions	Answers
(a) Is it the competent regulator that enforces the applicable laws and/or another body (e.g. the courts)?	The regulator.
(b) Do the possible legal consequences of a breach of applicable laws in relation to the cross-border marketing and sale of Funds and Investment Management & Advisory Services into your jurisdiction include:	
(i) criminal sanctions;	Yes. Under the Securities Act - a fine not exceeding MUR 1 million together with imprisonment not exceeding 5 years. FSA- A fine not exceeding MUR 100,000 and imprisonment not exceeding 2 years.
(ii) other sanctions (e.g. fines, loss of licence, public censure);	Yes including administrative penalties and revocation of a licence.
(iii) civil claims;	Yes civil claims can be brought.
(iv) the transaction to which the activity relates becoming void or voidable (and if voidable, at whose instigation)?	In relation to market abuses under the Securities Act, a Securities transaction may not necessarily be void or unenforceable merely because of an offence has been committed.
(c) Please provide details of maximum penalties (e.g. fines). Please state whether these sanctions are applicable to the OFI and/or to directors, officers or employees of the OFI and/or both.	With respect to administrative penalties, a maximum of 11 to 15% of the relevant gross income of the licensee.

	The transaction becomes void. Please see above. It can be to both the OFI and the directors/employees of the OFI (investment adviser and Funds). Where a licensee fails to pay administrative penalties, the Chief Executive of the FSC may, after giving notice of not less than 90 days to the licensee, terminate the licence subject to such terms and conditions as he deems appropriate in the circumstances.
(d) Please provide the 5 most recent examples (from published reports) of the competent regulator or courts taking action against an OFI in respect of a breach of applicable laws in relation to the cross-border marketing or sale/provision of Funds and Investment Management & Advisory Services to investors in your jurisdiction.	Emerging India Fund Management Ltd On 12 May 2022, the FSC revoked the Category 1 Global Business Licence and the Collective Investment Scheme Manager Licence of Emerging India Fund Management Ltd. This indicates substantial non-compliance in managing and marketing investment funds
(e) Please comment on: (i) the attitude of the regulator, courts or other body responsible for enforcement of the applicable laws; and	Not Applicable.
(ii) any accepted or tolerated market practice.	Not Applicable.

APPENDIX 1

DISCLAIMERS: OPEN-ENDED FUND

A: WRITTEN DISCLAIMERS

Wording to be used for a Fund that has been recognised as a Recognised Fully Regulated Scheme or for a Recognised Foreign CIS

Investors in [name of Fund] are not protected by any statutory compensation arrangements in Mauritius in the event of the Fund's failure.

"The Mauritius Financial Services Commission does not vouch for the financial soundness of the Fund or the correctness of any statements made or opinions expressed with regard to it".

Wording to be used where relying on the Sophisticated Investors exemption from the Public Offering of Securities Restriction

This prospectus does not constitute an offer in Mauritius other than to Sophisticated Investors as defined under section 2 of the Securities Act 2005 (as amended). By submitting an application for subscription, you represent and warrant to us that, at the time of entering into a securities transaction: (i) your ordinary business or professional activity includes the entering into securities transactions, whether as principal or agent; (ii) in case you are a natural person, your individual net worth or joint net worth with your spouse exceeds one million USD, or its equivalent in another currency; or (iii) you are an institution with a minimum amount of assets under discretionary management of 5 million USD, or its equivalent in another currency. If any recipient is not a Sophisticated Investor, no applications for [interests in the Fund] will be accepted from such recipient.

Wording to be used when responding to a reverse enquiry

Even though responding to a reverse enquiry is unlikely to trigger certain restrictions, it is still advisable to consider the Guidelines for Advertising and Marketing of Financial Products please see section 6.3(f) of the Memorandum for more information.

B: ORAL DISCLAIMERS

It is recommended to use the same warnings/disclaimers when marketing/selling Funds as for written materials during the course of the telephone call. Please see 1.A above.

Where a Fund is recognised by the FSC (as a foreign CIS or fully regulated scheme as per section 6.2(d)(i)), the promoter must disclose full and accurate identity and all benefits that will be paid to him (whether by way of fees, commissions, dividends).

In respect of any advertisement, see also section 6.3(f) for more information on the Guidelines for Advertising and Marketing of Financial Products issued by the FSC on 1 January 2015 which set out required disclosures and disclaimers on the product and the persons promoting them.

C: DISCLAIMERS – RETAIL INVESTORS

See A above.

D: DISCLAIMERS – MARKETING PASSPORT/MUTUAL RECOGNITION SCHEME

There are no such regional arrangements for passporting or mutual recognition of Funds in Mauritius.

APPENDIX 2
DISCLAIMERS: CLOSED-ENDED FUND

A: WRITTEN DISCLAIMERS

See Appendix 1.A.

B: ORAL DISCLAIMERS

See Appendix 1.B.

C: DISCLAIMERS – RETAIL INVESTORS

See Appendix 1.C.

D: DISCLAIMERS – MARKETING PASSPORT/MUTUAL RECOGNITION SCHEME

There are no such regional arrangements for passporting or mutual recognition of Funds in Mauritius.

APPENDIX 3**DISCLAIMERS: INVESTMENT MANAGEMENT & ADVISORY SERVICES****A: WRITTEN DISCLAIMERS**

Not applicable, no specific wording required.

Wording to be used when responding to a reverse enquiry

Even though responding to a reverse is unlikely to trigger certain restrictions, it is still advisable to in consider the Guidelines for Advertising and Marketing of Financial Products please see section 6.3(f) of the Memorandum for more information.

B: ORAL DISCLAIMERS

See 3.A above

C: DISCLAIMERS – RETAIL INVESTORS

APPENDIX 4**DISCLAIMERS: OTHER****A: GENERAL MARKETING DISCLAIMER**

This communication is provided for informational purposes only and does not constitute an offer or solicitation to invest in any financial product. Investment involves risks, including the possible loss of principal. Prospective investors should consult a licensed financial advisor before making any investment decision. The financial product and the services described may not be suitable for all investors and are subject to regulatory approval, where applicable.

The Mauritius Financial Services Commission does not vouch for the financial soundness of the Fund or the correctness of any statements made or opinions expressed with regard to it.

B: INTERNET DISCLAIMER**For targeted pages that refer to Funds that have been recognised**

For Funds, the FSC requires the following disclaimer as to the recognition of foreign Funds not implying that the regulator is vouching for the merits of investing in the scheme.

Investors in [please insert name of Fund] are not protected by any statutory compensation arrangements in Mauritius in the event of the Fund's failure.

"The Mauritius Financial Services Commission does not vouch for the financial soundness of the Fund or the correctness of any statements made or opinions expressed with regard to it".

In respect of any advertisement, see also section 6.3(f) for more information on the Guidelines for Advertising and Marketing of Financial Products issued by the FSC on 1 January 2015 which set out required disclosures and disclaimers on the product and the persons promoting them.

For non-targeted pages: no specific wording required.

C: VIRTUAL MARKETING - DISCLAIMER

See Appendix 1, 2 or 3 depending on the type of Fund/Service that the virtual meeting relates to.